



CHAPTER xliii

An Act to confer further powers upon the London County Council and other authorities; and for other purposes.
[3rd August, 1961.]

WHEREAS—

(1) It is expedient that the London County Council (hereinafter referred to as “the Council”) should be empowered to execute the works described in Part III of this Act, and to acquire for that purpose the lands described or referred to in Part II of this Act:

(2) The times limited by certain enactments for the compulsory purchase of lands and the completion of certain works by the Council will shortly expire, and it is expedient that the times so limited should be extended as by this Act provided:

(3) It is expedient that the Council and the mayor, aldermen and councillors of the metropolitan borough of Lambeth (hereinafter referred to as “the Lambeth Council”) should be authorised to abandon and discontinue the use of the dock in the metropolitan borough of Lambeth known as the White Hart Dock, and that the Lambeth Council should be empowered to construct a subway for pedestrian traffic on or near the site of the said dock:

(4) By the Poplar Borough Council (Superannuation) Acts, 1911 to 1952, provision is made for the establishment by the mayor, aldermen and councillors of the metropolitan borough of Poplar (hereinafter referred to as “the Poplar Council”) of a superannuation fund for the benefit of the employees of that council, and it is expedient that the said Acts should be amended as by this Act provided:

(5) By the Westminster City Council (Superannuation and Pensions) Act, 1909, provision is made for the establishment by the mayor, aldermen and councillors of the city of Westminster (hereinafter referred to as "the Westminster Council") of a superannuation fund and a pension fund for the benefit of the employees of that council, and it is expedient that the said funds should be amalgamated, and that other amendments should be made to the said Act, as by this Act provided:

(6) By the Thames River (Prevention of Floods) Acts, 1879 to 1957, provisions were made for the purpose of protecting lands in the administrative county of London from floods and inundations caused by the overflow of the river Thames, and it is expedient that those provisions should be extended as in this Act provided:

(7) It is expedient that the powers of the Council and of metropolitan borough councils in relation to any electronic or mechanical accounting equipment provided by them should be extended as by this Act provided:

(8) It is expedient that metropolitan borough councils should be empowered to enter on, and remedy the condition of, any derelict, neglected or unsightly land within their respective boroughs:

(9) It is expedient that metropolitan borough councils and the common council of the city of London should be empowered to provide a service for the supply of food and nourishment to invalids and other ill or handicapped persons:

(10) It is expedient that the mayor, aldermen and councillors of the metropolitan borough of Islington and the mayor, aldermen and councillors of the metropolitan borough of Saint Pancras (hereinafter respectively referred to as "the Islington Council" and "the Saint Pancras Council") should be empowered to provide, maintain and operate, or to arrange for the provision of, a transport service within the boundaries of the Islington and Saint Pancras Cemetery:

(11) It is expedient that the mayor, aldermen and councillors of the metropolitan borough of Chelsea (hereinafter referred to as "the Chelsea Council") should be empowered to provide, and to lease or let, shop premises on certain lands belonging to them:

(12) It is expedient that the basis upon which the pensions of certain servants of the mayor, aldermen and councillors of the metropolitan borough of Paddington (hereinafter referred to as "the Paddington Council") are calculated in pursuance of the provisions of the Paddington Borough Council (Superannuation and Pensions) Act, 1911, should be modified, and that other amendments should be made to the said Act, as by this Act provided:

(13) It is expedient that the other provisions contained in this Act should be enacted:

(14) The objects aforesaid cannot be attained without the authority of Parliament:

(15) Estimates have been prepared of the cost of carrying out the works to be executed by the Council under Part III of this Act and the acquisition by the Council of lands in connection therewith as provided for in Part II of this Act, and also of the cost of the pedestrian subway to be executed by the Lambeth Council under Part V of this Act, and such estimates amount to three million four hundred and sixty thousand pounds and seventy thousand pounds respectively:

(16) Plans and sections showing the lines and levels of the works to be executed by the Council and by the Lambeth Council under the powers of this Act, such plans also showing the lands which may be acquired or used compulsorily by the Council for or in connection with the said works, together with a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of all those lands, have been deposited in the office of the Clerk of the Parliaments, House of Lords, and in the Private Bill Office of the House of Commons and with the clerk of the Council and are in this Act referred to respectively as the deposited plans, the deposited sections and the deposited book of reference:

(17) In relation to the promotion of the Bill for this Act the Council (as respects the appropriate provisions of the Bill) have complied with the requirements of section 151 of the London Government Act, 1939, and the Lambeth Council, the Poplar Council, the Westminster Council, the Islington Council, the Saint Pancras Council, the Chelsea Council and the Paddington Council (as respects the provisions of the Bill relating exclusively to those councils) have complied with the requirements of sections 151 and 152 of that Act as amended by the London County Council (General Powers) Act, 1948:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows (that is to say):—

PART I

PRELIMINARY

1. This Act may be cited as the London County Council Short title. (General Powers) Act, 1961.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands.

Division of
Act into
Parts.

PART I
—cont.

Part III.—Works.

Part IV.—Extensions of time.

Part V.—White Hart Dock.

Part VI.—Poplar Borough Council (superannuation).

Part VII.—Westminster City Council (superannuation).

Part VIII.—Miscellaneous.

Part IX.—Supplemental.

Interpretation.

3.—(1) In this Act except as otherwise expressly provided or unless the context otherwise requires—

“ the Act of 1845 ” means the Lands Clauses Consolidation Act, 1845;

“ the Act of 1936 ” means the London and Middlesex (Improvements &c.) Act, 1936;

“ the Act of 1937 ” means the Local Government Superannuation Act, 1937;

“ the Act of 1938 ” means the London County Council (Tunnel and Improvements) Act, 1938;

“ the Act of 1939 ” means the London Government Act, 1939;

“ the Act of 1948 ” means the London County Council (Improvements) Act, 1948;

“ the Act of 1958 ” means the London County Council (General Powers) Act, 1958;

“ the Act of 1961 ” means the Land Compensation Act, 1961;

“ borough ” means a metropolitan borough, and “ the borough ” means the metropolitan borough in relation to which the expression is used;

“ borough council ” means the mayor, aldermen and councillors of a borough, and “ the borough council ” means the mayor, aldermen and councillors of the borough in relation to which the expression is used;

“ the Chelsea Council ” means the mayor, aldermen and councillors of the borough of Chelsea;

“ the Conservators ” means the Wimbledon and Putney Commons Conservators incorporated by The Wimbledon and Putney Commons Act, 1871;

“ the Council ” means the London County Council;

“ enactment ” means any enactment, whether public general or local, and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;

“ the improvements ” means Works Nos. 1 to 6 (inclusive) by Part III of this Act authorised or any of them or any part thereof respectively;

- “ the Islington Council ” means the mayor, aldermen and councillors of the borough of Islington;
- “ the Lambeth Council ” means the mayor, aldermen and councillors of the borough of Lambeth;
- “ land ” or “ lands ” includes any interest in land, and any easement or right in, to or over land;
- “ the Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Lands Tribunal Act, 1949, and by the Act of 1961;
- “ magistrates’ court ” has the same meaning as in subsection (1) of section 124 of the Magistrates’ Courts Act, 1952;
- “ the Paddington Council ” means the mayor, aldermen and councillors of the borough of Paddington;
- “ the Poplar Council ” means the mayor, aldermen and councillors of the borough of Poplar;
- “ reserved area ” means any area for the time being set apart in the improvements for dividing lines of traffic;
- “ the Roehampton Lane improvement ” means Works Nos. 1, 2 and 3 authorised by Part III of this Act;
- “ the Saint Pancras Council ” means the mayor, aldermen and councillors of the borough of Saint Pancras;
- “ street ” has the meaning assigned to that term in the Metropolis Management Acts, 1855 to 1893;
- “ the tribunal ” means the tribunal or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Act of 1961;
- “ the Wandsworth Council ” means the mayor, aldermen and councillors of the borough of Wandsworth;
- “ the Westminster Council ” means the mayor, aldermen and councillors of the city of Westminster;
- “ Wimbledon Common ” means the open spaces known as Wimbledon Common (including Wimbledon Green and Putney Heath) and Putney Lower Common.

(2) Where in this Act (except in sections 24 and 45 (which relate to deviations from lines and levels) of this Act) any distance or length is stated in the description of any work, the reference to that distance or length shall be construed as if the words “ or thereabouts ” were inserted after such distance or length.

(3) Any reference in this Act to an enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment including this Act.

PART I
—cont.
Incorporation
of Lands
Clauses Acts.

4. The Lands Clauses Acts, except sections 127 to 133 and sections 150 and 151 of the Act of 1845, so far as such Acts are applicable for the purposes of and are not inconsistent with the provisions of this Act, are hereby incorporated with and form part of this Act.

PART II

LANDS

Power to
acquire lands.

5.—(1) Notwithstanding anything contained in any other enactment, but subject to the provisions of this Act, the Council may enter upon, take and use any of the lands delineated on the deposited plans and described in the deposited book of reference which may be required for the purposes of or in connection with the improvements and for providing space for the erection of houses and buildings adjoining or near to the improvements, and for the purposes of recoupment, reinstatement or exchange, and for other purposes of this Act or for any of the aforesaid purposes.

(2) The powers of the Council for the purchase of lands by agreement shall be deemed to extend to, and to authorise, the purchase by the Council by agreement of any other lands in the county which they may think it desirable to purchase in order to provide substituted sites or facilities for any persons whose lands may be required by the Council for the purposes of, or in connection with, the improvements.

(3) The powers of compulsory acquisition of land under this section shall cease after the expiration of three years from the first day of October, nineteen hundred and sixty-one.

(4) Any lands acquired by the Council under the provisions of this section which form part of Wimbledon Common shall cease for all purposes to form part of that common and to be subject to any enactment for the management of the said common by the Conservators, and any lands conveyed by the Council to the Conservators in exchange for any such lands as hereinafter provided together with any lands forming the site of any part of Roehampton Lane which is stopped up under section 20 (Power to stop up part of Roehampton Lane and vesting of site thereof) of this Act shall form part of Wimbledon Common and be subject to the like rights, trusts and incidents as attached to the lands so acquired by the Council as aforesaid to the intent—

- (a) that the lands so conveyed in exchange and any lands forming the site of any part of Roehampton Lane stopped up as aforesaid shall be controlled, regulated and managed by the Conservators; and
- (b) that any byelaws and regulations made under any such enactment as aforesaid shall be enforceable as fully and effectually as if those lands formed, and had always formed, part of Wimbledon Common.

6. No lands forming part of Wimbledon Common shall be acquired by the Council under the powers conferred by this Part of this Act unless agreement has been reached between the Council and the Conservators as to—

PART II
—cont.

As to lands
to be given
in exchange.

- (a) the lands which are to be conveyed by the Council to the Conservators for addition to Wimbledon Common in exchange for the lands so to be acquired by the Council; and
- (b) the manner in which the parts of Roehampton Lane to be stopped up under section 20 (Power to stop up part of Roehampton Lane and vesting of site thereof) of this Act are to be turfed or otherwise laid out by the Council:

Provided that—

- (i) the lands so to be conveyed by the Council to the Conservators as aforesaid shall be equivalent as nearly as may be in area to the lands so to be acquired by the Council as aforesaid;
- (ii) the area of any part of Roehampton Lane which under the said section 20 is stopped up and forms part of Wimbledon Common shall be treated for the purposes of this section as part of the said equivalent area;
- (iii) if the Council and the Conservators fail to reach agreement as to the matters referred to in the foregoing paragraphs (a) and (b) or either of them, the matter in difference shall be referred to and determined by the Minister of Agriculture, Fisheries and Food.

7.—(1) If the deposited plans or the deposited book of reference are inaccurate in their description of any land, or in their statement or description of the ownership or occupation of any land, the Council, after giving ten days' notice to the owner, lessee and occupier of the land in question, may apply to a metropolitan stipendiary magistrate for the correction thereof.

(2) If on any such application it appears to the magistrate that the misstatement or wrong description arose from mistake, he shall certify the fact accordingly and shall in his certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments, House of Lords, and a copy thereof in the Private Bill Office of the House of Commons and with the clerk of the Council and with the town clerk of the borough in which the land is situate, and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate, and it shall be lawful for the Council to take the land and execute the improvements in accordance with the certificate.

PART II
—cont.

(4) A person with whom a copy of a certificate is deposited under this section shall keep it with the other documents to which it relates.

Acquisition of
part only of
certain
properties.

8.—(1) Whereas, in the construction of the improvements or otherwise in the exercise by the Council of the powers of this Act, it may happen that portions only of the properties shown or partly shown on the deposited plans and thereon respectively numbered 2 to 16 (inclusive), 19 to 36 (inclusive), 38, 38A, 39, 40, 41, 43 to 51 (inclusive), 53 to 65 (inclusive), 67 to 75 (inclusive), 77, 79 to 95 (inclusive), 97 to 104 (inclusive), 107 to 116 (inclusive), 118 to 125 (inclusive), 127, 130, 131, 152, 157, 158, 159, 184 to 197 (inclusive), 200 to 227 (inclusive), 229 to 235 (inclusive), 237 to 243 (inclusive), 246 to 251 (inclusive), 253 to 267 (inclusive), 270 to 283 (inclusive), 285, 287, 288, 289, 291, 292, 294 to 298 (inclusive), 300 to 318 (inclusive), 321 to 335 (inclusive) and 338 in the borough of Hampstead will be sufficient for the purposes of the Council, and that such portions or some other portions less than the whole can be severed from the remainder of the said properties respectively without material detriment thereto, therefore the following provisions shall have effect:—

(a) In this subsection—

(i) references to the owner of any property are references to all persons having an interest in that property; and

(ii) any reference to the severance of a portion of any property from the remainder of such property without material detriment thereto shall, in the case where such portion is part of a park or garden belonging to a house, be construed as a reference to the severance of such portion without seriously affecting the amenity or convenience of the house to which the park or garden belongs:

(b) Unless, within twenty-one days after the service of notice to treat in respect of a specified portion of any of the said properties, a person who is an owner notifies the Council in writing that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto, the owner may be required to sell and convey to the Council such portion only without the Council being obliged or compellable to purchase the whole, the Council paying for the portion so taken and making compensation for any loss sustained by any person who is an owner, by severance or otherwise:

(c) If within such twenty-one days any person who is an owner alleges by notice in writing to the Council that

such portion cannot be so severed, the tribunal shall, in addition to the other questions required to be determined by it, determine whether the portion of the property specified in the notice to treat can be severed from the remainder without material detriment thereto, and if not whether any, and what, other portion less than the whole, but not exceeding the portion which may be acquired compulsorily under this Act, can be so severed:

- (d) If the tribunal determines that the portion of the property specified in the notice to treat, or any such other portion as aforesaid, can be severed from the remainder without material detriment thereto, the owner may be required to sell and convey to the Council the portion which the tribunal have determined to be so severable without the Council being obliged or compellable to purchase the whole, the Council paying such sum for the portion taken by them, including compensation for any damage sustained by a person who is an owner, by severance or otherwise, as shall be awarded by the tribunal:
- (e) If the tribunal determines that the portion of the property specified in the notice to treat can be severed from the remainder without material detriment thereto, the tribunal may order that the costs, charges and expenses incurred by any person who gave notice under paragraph (c) of this subsection incident to the determination of any matters under this section, or such part, if any, of the said costs, charges and expenses as it thinks fit, shall be borne and paid by him:
- (f) If the tribunal determines that the portion of the property specified in the notice to treat cannot be severed from the remainder without material detriment thereto, and whether or not it determines that any other portion can be so severed, the Council may withdraw their notice to treat, and thereupon they shall pay to any person who is an owner all costs, charges and expenses reasonably and properly incurred by him in consequence of the notice:
- (g) If the tribunal determines that the portion of the property specified in the notice to treat cannot be severed from the remainder without material detriment thereto, but that any such other portion as aforesaid can be so severed, the Council, in case they shall not withdraw the notice to treat, shall pay to any person who is an owner all costs, charges and expenses reasonably and properly incurred by him in consequence of the notice, or such portion thereof as the tribunal thinks fit having regard to the circumstances of the case and its final determination.

PART II
—*cont.*

(2) The provisions of this section shall be in force notwithstanding anything contained in the Act of 1845; and nothing contained in, or done under, this section shall be held as determining, or as being or implying an admission, that the said properties, or any of them or any part thereof, is or is not, or but for this section would or would not be, subject to the provisions of section 92 of the Act of 1845.

(3) The provisions of this section shall be stated in, or endorsed on, every notice to treat served under this Act in respect of any portion of the said properties.

Power to use
subsoil of
streets.

9. Subject to the provisions of this Act the Council may enter upon, take, use and appropriate so much of the subsoil and under-surface of any public street within the limits of deviation shown on the deposited plans as shall be necessary for the purposes of the improvements without being required to purchase the same or any easement therein or thereunder.

Power to
acquire
easements
only.

10.—(1) The Council may, instead of acquiring any land which they are authorised to acquire compulsorily under this Act, acquire compulsorily such easements and rights in or over the land as they may require for the purpose of constructing, using, maintaining, renewing or removing the improvements or of doing any other thing necessary in connection with the improvements.

(2) Accordingly the Council may give notice to treat in respect of any such easement or right describing the nature thereof; and the provisions of the Lands Clauses Acts shall apply in relation to the acquisition of such easements and rights as if they were lands within the meaning of those Acts.

(3) Where the Council have acquired an easement or right only in, over or affecting any land under this section—

- (a) they shall not be required or, except by agreement or during the execution of the improvements, entitled to fence off or sever that land from the adjoining land;
- (b) the owner or occupier of the land for the time being shall, subject to the easement or right, have the same right to use the land as if this section had not been enacted.

(4) If in his particulars of claim* the owner of any land in respect of which notice to treat for an easement or right is given under this section requires the Council to acquire the land, the Council shall not be entitled under this section to acquire the easement or right unless the tribunal determines that the easement or right can be granted without material detriment to the land or, in the case of a park or garden belonging to a house, without seriously affecting the amenity or convenience of the house;

and, if the tribunal does not so determine, the Council may acquire the land compulsorily after the expiration of the period mentioned in subsection (3) of section 5 (Power to acquire lands) of this Act, but not later than one year after the determination of the tribunal:

PART II
—cont.

Provided that nothing in this subsection shall apply to land forming part of a street.

(5) A notice to treat given under this section shall be endorsed with notice of the effect of subsection (4) of this section.

11. All private rights of way over any land which may be acquired compulsorily under section 5 (Power to acquire lands) of this Act shall, as from the acquisition of the land, whether compulsorily or by agreement, be extinguished.

Extinction
of private
rights of way.

12. Any person who suffers loss by the extinguishment of any private right of way under any of the following sections of this Act:—

Compensation
for
extinction of
private rights
of way.

Section 11 (Extinction of private rights of way);

Section 20 (Power to stop up part of Roehampton Lane and vesting of site thereof);

Section 22 (Power to make subsidiary works, etc.); and

Section 29 (Vesting of site of street stopped up);

shall be entitled to be paid by the Council compensation to be determined in case of dispute under and in accordance with the Act of 1961.

13. Any person acting on behalf of the Council, and duly authorised in that behalf, may, on producing, if so required, some duly authenticated document showing his authority, at all reasonable times enter on any land which may be acquired compulsorily under section 5 (Power to acquire lands) of this Act for the purpose of surveying or valuing the land:

Power to
enter for
survey or
valuation.

Provided that no land shall be entered under this section unless the Council, not less than seven days before the first entry and not less than twenty-four hours before any subsequent entry, have given notice to the owner and occupier thereof.

14.—(1) Any person empowered by the Lands Clauses Acts to sell and convey or release land may if he thinks fit, subject to the provisions of those Acts, grant to the Council any easement or right required for the purposes of this Act in, over or affecting any such land, not being an easement or right of water in which some person other than the grantor has an interest.

Grant of
easements by
persons
under
disability.

(2) The provisions of the said Acts with respect to lands and rentcharges so far as they are applicable shall extend and apply to any such grant and to any such easement or right as aforesaid.

PART II

—cont.

Agreements
with adjoining
owners.

15.—(1) The Council may enter into and carry into effect agreements with any person being the owner of, or interested in, any land abutting on any portion, either of the improvements or of land which may be acquired under this Act, with respect to the sale by the Council to him of any land, including any part of a street or highway appropriated by the Council under this Act and not required for the improvements.

(2) The Council may accept as satisfaction of the whole or any part of the consideration for any such sale the grant by the purchaser of any land required by the Council for the purposes of this Act or any easement or right so required.

Disregard of
recent
improve-
ments and
interests.

16. In determining any question of disputed compensation or purchase money in respect of land acquired under this Act, the tribunal shall not take into account—

(a) any improvements or alteration made, or building erected, after the fifth day of December, nineteen hundred and sixty, or

(b) any interest in the land created after the said date, which, in the opinion of the tribunal, was not reasonably necessary and was made, erected or created with a view to obtaining or increasing the compensation or purchase money.

Power to
expedite entry.

17. At any time after serving a notice to treat in respect of any land which may be acquired compulsorily under this Act, but not less than three months after giving the owner and occupier of the land notice of their intention to exercise the powers of this section, the Council may enter on and take possession of the land, or such part thereof as is specified in the last-mentioned notice, without previous consent and without compliance with sections 84 to 90 of the Act of 1845:

Provided that the Council shall pay the like compensation for land of which possession is taken under this section, and the like interest on the compensation awarded, as would have been payable if the provisions of those sections had been complied with.

Compensa-
tion for
injurious
affection, etc.

18.—(1) Where access to any premises abutting on or having a frontage to Finchley Road is permanently obstructed by the carrying out of Work No. 4 by this Act authorised, the owners and occupiers of the said premises shall be entitled to claim compensation from the Council in respect of any damage or injurious affection sustained by them by reason of such obstruction:

Provided that no compensation shall be payable under this section in respect of any damage or injurious affection for which compensation may be claimed under any other enactment.

(2) Any dispute arising as to the amount of compensation payable under this section shall be determined by the Lands Tribunal.

PART III

WORKS

19.—(1) Subject to the provisions of this Act, the Council may, in the lines or situations and within the limits of deviation shown on the deposited plans and according to the levels shown on the deposited sections, execute the works described in subsection (2) of this section. Power to execute works.

(2) The works referred to in subsection (1) of this section are—

In the borough of Wandsworth—

Work No. 1 A variation (including a widening on the eastern side and a diversion) of Roehampton Lane commencing at a point thirty yards south-east of the junction of Roehampton Lane with Ponsonby Road and terminating by a junction with Kingston Road at a point seventy-four yards west of the junction of Kingston Road with the western branch of Roehampton Lane;

Work No. 2 A widening on both sides of Kingston Road commencing at a point two hundred and eighty-two yards west of the junction of Kingston Road with the western branch of Roehampton Lane and terminating at a point one hundred and twenty-three yards east of the said junction;

Work No. 3 A widening on both sides of Kingston Road commencing at a point twenty-five yards west of the centre of the eastern entrance to Putney Vale cemetery and terminating by a junction with Work No. 2 at the commencement thereof:

In the borough of Hampstead—

Work No. 4 A widening of Finchley Road partly on both sides and partly on the eastern side and partly on the western side commencing at a point on the boundary of the county with the county of Middlesex forty-three yards north of the junction of Finchley Road with Hendon Way and terminating by a junction with Adelaide Road;

Work No. 5 A widening of College Crescent on the eastern side commencing at the junction thereof with Buckland Crescent and terminating at its junction with Finchley Road;

Work No. 6 A widening of Avenue Road on the eastern side commencing at the junction thereof with Finchley Road and terminating at a point sixty-eight yards south of its junction with Finchley Road.

(3) In executing the works authorised by this section, and in addition to and not in derogation of any of the powers conferred

PART III
---cont.

by this Part of this Act, the Council may exercise the like powers in all respects as if the works were being carried out by the Council in the exercise of their powers under section 144 of the Metropolis Management Act, 1855, of making, widening or improving streets.

Power to
stop up
part of
Roehampton
Lane and
vesting of
site thereof.

20. The Council may, for the purposes of and in connection with the Roehampton Lane improvement, stop up the whole or so much as they may from time to time think fit of the portions of Roehampton Lane in the borough of Wandsworth which lie southwards of Portsmouth Road and are not required to be incorporated in the said improvement, and on such stopping up the site and soil thereof shall vest in the Conservators and shall for all purposes form part of Wimbledon Common, and all rights of way over the same, and other rights in respect thereof which are inconsistent therewith, shall thereupon be extinguished.

Power to
pump water
and use
sewers for
removing
water.

21. The Council may pump any water found by them in the execution of the improvements and may use for the discharge of any such water any available stream or watercourse or any sewer or drain, and for that purpose may, within the limits of deviation shown on the deposited plans, lay down, take up and alter conduits, pipes and other works and make any convenient connections with any such stream, watercourse, sewer or drain.

Power to
make
subsidiary
works, etc.

22.—(1) Subject to the provisions of this Act, and within the limits of deviation shown on the deposited plans, the Council, in connection with and for the purposes of this Part of this Act and as part of the improvements (in addition to the works described or referred to in any other provision of this Act), may execute or do any of the following works or things (that is to say):—

- (a) make junctions and communications (including the provision of steps and ramps for the use of persons on foot) with any existing street intersected or interfered with by or contiguous to the improvements, and divert or widen or alter the line or alter the level of any existing street for the purposes of the improvements;
- (b) stop up any part of a street which they may consider unnecessary to retain or to throw into the improvements;
- (c) raise, sink or otherwise alter the position of any of the steps, areas, cellars, cellar-flaps, pavement lights, gratings, boundary walls, railings, fencings, windows, sewers, drains, watercourses, pipes, spouts or wires belonging to any house or building and remove all other obstructions so as to cause in so doing as little delay and inconvenience to the inhabitants as the circumstances of the case will admit, and the Council shall make compensation to any person who suffers damage by any such alterations, such compensation to be determined in case of dispute by the Lands Tribunal;

- (d) execute any works for the protection of any adjoining land or buildings;
- (e) execute any works and do any things necessary for the strengthening and supporting of any walls of adjoining buildings;
- (f) construct any embankments or retaining walls for supporting the improvements.

(2) The Council may, on any lands abutting on the improvements and outside the limits of deviation shown on the deposited plans, execute or do, by agreement with the owners and occupiers of the said lands, any of the works or things referred to in paragraphs (c), (d) and (e) of subsection (1) of this section and any other works necessary or convenient for the purpose of providing or facilitating access to or from the said lands or for preserving the amenities thereof.

23. Subject to the provisions of this Act, the Council may, for the purposes of or in connection with the improvements and within the limits of deviation shown on the deposited plans, construct and execute all such bridges, arches, piers, viaducts, embankments, tunnels, abutments, wing walls and other works as they may deem necessary or expedient for carrying the improvements over or under any railway, stream or watercourse, or any land, and may for the purpose of, and during, the execution of the improvements over or under any railway erect, place or execute and maintain upon, over or under such railway all such temporary structures, erections, works, apparatus and appliances as may be necessary or convenient and as will not prevent the safe use of such railway or interfere to any greater extent than is reasonably necessary with the traffic thereon.

Power to construct bridges, etc., and to execute temporary works on railways.

24. In executing the improvements the Council may deviate laterally from the lines or situations thereof to any extent within the limits of deviation shown on the deposited plans relating thereto respectively, and vertically from the levels thereof defined on the deposited sections to any extent not exceeding twenty-five feet upwards or to such extent as may be found necessary or convenient downwards.

Deviation from lines and levels.

25.—(1) Subject to the provisions of this Act, the Council may cause such parts of the improvements to be laid out for carriage-way and such parts thereof for footway and such parts thereof for reserved area as they may think proper, and may, upon the lands acquired by them under the powers of this Act and within the limits of deviation shown on the deposited plans, construct, erect and provide all such works and conveniences, including subways (whether for persons on foot or for the accommodation of mains, pipes or wires) as they may think proper for the purposes of or in connection with the improvements.

Carriageway, footway and other works.

(2) The provisions of the London County Council (Subways) Act, 1893, and all byelaws for the time being in force thereunder,

PART III
—cont.

shall extend and apply to any subway for the accommodation of mains, pipes or wires constructed by the Council under the powers of this Act as well during as after the construction thereof as if any such subway had been included in the expression "subway" in the said Act of 1893, and for the purposes of the application of the said Act of 1893 to any such subway the Metropolitan Water Board and the London Hydraulic Power Company shall be deemed to be water companies.

Prohibition
of persons,
vehicles, etc.,
on reserved
area.

26. Where the Council lay out any part of the improvements as a reserved area, and the highway authority indicate by notices conspicuously placed on such reserved area or in proximity thereto or by the erection of fences that such reserved area or any part thereof is not intended for use by foot-passengers, horses, cattle or vehicles, any person who shall wilfully walk or otherwise proceed or lead, ride or drive any horse or cattle or vehicle on, over or across any such reserved area or part thereof in contravention of the terms of any such notice or in disregard of any such fence, shall be liable on summary conviction to a fine not exceeding five pounds for each offence.

Underpinning
of houses
near improve-
ments:

27. The Council at their own costs and charges may, subject as hereinafter provided, underpin or otherwise strengthen any house or building within one hundred feet of any of the improvements, and the following provisions shall have effect (that is to say):—

- (1) At least ten days' notice shall, except in case of emergency, be given to the owners, lessees and occupiers of the house or building intended to be so underpinned or otherwise strengthened:
- (2) Each such notice shall be served in manner prescribed by section 19 of the Act of 1845:
- (3) If any owner, lessee or occupier of any such house or building shall, within seven days after the giving of such notice, give a counter-notice in writing that he disputes the necessity of such underpinning or strengthening, the question of the necessity shall be settled by arbitration:
- (4) The Council shall be liable to compensate the owners, lessees and occupiers of every such house or building for any loss or damage which may result to them by reason of the exercise of the powers granted by this section, provided that the claim for compensation in respect of such loss or damage be made within three months from the occurrence thereof:
- (5) In any case in which any house or building shall have been underpinned or strengthened under the powers of this section the Council may, from time to time after the completion of such underpinning or strengthening,

and during the execution of the work in connection with which such underpinning or strengthening was done, or within twelve months after the opening for traffic of that work, enter upon and survey such house or building and do such further underpinning or strengthening thereof as they may deem necessary or expedient or, in case of dispute between the Council on the one hand and the owner, lessee or occupier of the house or building on the other hand, as shall be settled by arbitration:

- (6) If in any such case as is referred to in the last foregoing paragraph the underpinning or strengthening done by the Council shall at any time within twelve months from the opening for traffic of the work in connection with which such underpinning or strengthening was done prove inadequate for the support or protection of the house or building against further injury arising from the execution of such work, the Council shall make compensation to the owner, lessee and occupier of the house or building for such injury, provided that the claim for compensation in respect thereof be made within one month from the discovery thereof:
- (7) Nothing in this section contained nor any dealing with any property in pursuance of this section shall relieve the Council from the liability to compensate under section 68 of the Act of 1845, or under any other Act:
- (8) Every case of compensation to be ascertained under this section shall be determined under and in accordance with the Act of 1961.

28. Subject to the provisions of this Act, the Council may, for Power to the purposes of and in connection with the improvements, stop stop up up the whole or such portion or portions as they may from street. time to time think fit of Belsize Road in the borough of Hampstead between its junction with Finchley Road and a point sixty-seven yards or thereabouts westward of that junction.

29. On the stopping up (otherwise than temporarily) of any Vesting of part of Belsize Road under the powers of the last foregoing site of street section of this Act all rights of way over the same and other stopped up. rights in respect thereof shall be extinguished and the site and soil thereof shall vest in the Council so far as such site and soil shall not be already vested in them subject to the payment of compensation, if any, by the Council to any person in respect of the value, if any, of his interest in the site and soil of any part of Belsize Road vested in the Council by virtue of this section, such compensation to be determined in case of dispute under and in

PART III
—cont.

accordance with the provisions of the Act of 1961, but in assessing such compensation no regard shall be had to any enhancement in the value of any interest in such part due to such stopping up:

Provided that the Council shall not stop up any part of Belsize Road unless they are owners in possession of all houses and lands (other than lands forming part of any street) on both sides of the part of the road to be stopped up, except so far as the owners, lessees and occupiers of such houses and lands may otherwise agree.

Power to
prevent
access to or
from
improvements.

30.—(1) For the purpose of facilitating the movement of vehicular traffic along, or the safety of the public on, the route of any of the improvements, the Minister of Transport, on the application of the Council, or the council of the borough in which the improvement is situate, may from time to time authorise the applicant, whether the Council or a borough council, at or in the vicinity of the junction of any street with the improvement to erect or remove—

(a) barriers for the prevention, prohibition or limitation of access by vehicular traffic to or from such route from or to any such street; or

(b) notices prohibiting or limiting such access.

(2) The Council or the borough council concerned (as the case may be) shall give public notice of the making of an application under subsection (1) of this section in such manner as the Minister of Transport may direct.

(3) Any person removing or interfering with any such barrier, or removing, defacing or failing to comply with any such notice, shall be liable on summary conviction to a fine not exceeding five pounds.

Power to
stop up ways
temporarily.

31.—(1) Subject to the provisions of this Act, the Council may for the purposes of and during the execution of the improvements stop up, open, break up, interfere with, alter or divert temporarily all or any part of the carriageway or footway of any street or part of a street or of any subway within the limits of deviation shown on the deposited plans, and may execute and do all necessary works and things for or in connection with such stopping up, opening, breaking up, interference, alteration or diversion, and for keeping such carriageway or footway open for traffic, and may remove or alter any drinking-troughs, lamp-posts, street refuges, lavatories, posts and other erections upon the lands so affected.

(2) The Council shall provide reasonable access for all persons bona fide going to or returning from any premises in any street of which the carriageway or footway is stopped up, interfered with, altered or diverted under the powers of this section.

PART III

—cont.

As to Holy
Trinity Church,
Hampstead.

32.—(1) The Disused Burial Grounds Act, 1884, shall cease to apply to any part of the churchyard of Holy Trinity Church in the borough of Hampstead which the Council may acquire under the powers of this Act.

(2) Before the Council carry out under the powers of this Act any work on any part of the churchyard referred to in subsection (1) of this section they shall remove or cause to be removed the remains of all deceased persons interred in such part:

Provided that a Secretary of State, on the application of the Council and on being satisfied that such removal is not necessary or desirable, may dispense with all or any of the requirements of this section on such conditions, if any, as he thinks fit.

(3) Before proceeding to remove any such remains the Council shall publish a notice for three successive days in two newspapers circulating in the county of London to the effect that it is intended to remove the remains, and such notice shall have embodied in it the substance of subsections (4) to (7) and (9) of this section.

(4) At any time within two months after the first publication of such notice any person who is an executor, administrator or relative of any deceased person whose remains are interred in such part of the said churchyard may give notice in writing to the Council of his intention to undertake the removal of such remains, and thereupon he shall be at liberty without any faculty for the purpose, but subject as hereinafter mentioned and to any regulations made by the Lord Bishop of the diocese of London, to cause such remains to be removed to and reinterred in any consecrated burial ground or cemetery in which burials may legally take place, but in the case of a churchyard only with the consent of the incumbent of the parish concerned.

(5) If any person giving such notice as aforesaid shall fail to satisfy the Council that he is such executor, administrator or relative as he claims to be, the question shall be determined on the application of either party in a summary manner by the registrar of the consistory court of the diocese of London who shall have power to make an order specifying who shall remove and reinter the remains, and as to the payment of the costs of the application.

(6) The expense of such removal and reinterment (not exceeding in respect of remains removed from any one grave the sum of fifty pounds) shall be defrayed by the Council, such sum to be apportioned if necessary equally according to the number of remains in the grave.

(7) If—

- (a) within the aforesaid period of two months no such notice as aforesaid shall have been given to the Council in respect of the remains in any grave; or

PART III
—cont.

(b) within one month after such notice has been given no application has been made under subsection (5) of this section and the person giving the notice fails to remove the remains; or

(c) within one month after any order is made by the registrar under the said subsection the person, not being the Council, specified in the order fails to remove the remains;

the Council may, without any faculty for that purpose, cause the remains of the deceased person to be removed and reinterred in such other consecrated burial ground or cemetery in which burials may legally take place and which, subject to the consent of the said bishop, the Council think suitable for the purpose but in the case of reinterment in a churchyard the previous consent of the incumbent of the parish concerned shall also be required.

(8) Upon the reinterment of any remains under this section a certificate of reinterment shall be sent to the Registrar-General by the Council, giving the date of reinterment and identifying the place from which the remains were removed and the place in which they are reinterred.

(9) All monuments and tombstones relating to the remains of any deceased person removed under this section shall at the expense of the Council be removed and re-erected at the place of reinterment of such remains or at such place within the said county as the said bishop may direct on the application, if any, of such executor, administrator or relative as aforesaid, or, failing such application, on the application of the Council, and the Council shall cause to be made a record of each monument or tombstone re-erected under this section containing—

(a) a copy of the inscription on it; and

(b) a statement where it has been erected;

and shall deposit a copy of the record with the Registrar-General.

(10) The removal and reinterment of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the said county.

Sewers, etc.,
to be removed,
arched over
or filled up.

33. Subject to the provisions of this Act, the Council may cause to be removed, arched over or filled up all such sewers, drains or watercourses or parts thereof as shall be in or near the streets to be interfered with for the purposes of the improvements and as shall become unnecessary.

Vesting and
disposal of
materials.

34. There shall by virtue of this Act be vested in the Council—

(a) all materials and apparatus in, under, upon or over any lands acquired by them under the powers of this Act;

(b) all lamp-posts, paving, metalling and other materials in, over or under any street or part of a street stopped up, altered or diverted; and

(c) all materials obtained in the alteration of or interference with any street, sewer or drain in connection with the improvements;

and the Council may appropriate and use or sell or dispose of the same or any of them:

Provided that the Council shall not under the powers of this section sell or dispose of any matter or thing if any person other than a borough council proves to the reasonable satisfaction of the Council that he is the owner thereof.

35.—(1) When any part of the improvements is completed a certificate thereof shall be issued under the seal of the Council, and any duly authenticated copy of such certificate shall in all proceedings and for all purposes be admissible and received as evidence that such certificate has been duly made and that the part of the improvements to which such certificate relates has been completed, and from the date of such certificate so much of the part of the improvements to which such certificate relates as has been laid out as carriageway, reserved area or footway shall, subject to the provisions of this Act, form part of or constitute the street and may, subject as aforesaid, be used by the public accordingly.

Improvements
to form
public streets
and as to
repair thereof.

(2) Subject to the provisions of this Act, so much of the land acquired by the Council for or in connection with the improvements as is laid out as carriageway, reserved area or footway shall after the issue of the certificate relating thereto (subject to the enjoyment by the council of the borough in which the land is situate of all such rights in such land as are usually enjoyed in respect of a street by the highway authority) be and remain vested in the Council, and the maintenance, repair, paving, draining, cleansing and lighting of so much of the improvements as has been laid out as aforesaid (including unless otherwise agreed any subways for persons on foot constructed in connection therewith) shall be under the care, management, control and jurisdiction of the council of the borough in which the same is situate.

(3) If within a period of five years after the issue by the Council pursuant to the provisions of this Act of a certificate of the completion of any part of the improvements any subsidence of that part of the improvements shall occur, the Council may, in their discretion, contribute towards the costs and expenses incurred by the council of the borough in which the same is situate in making good that part of the improvements, but nothing in this subsection shall affect any claim which may lawfully be made in respect of such subsidence.

PART III
—cont.

Period for
completion
of improve-
ments.

36. If the improvements are not completed within five years from the first day of October, nineteen hundred and sixty-one, then, as from the expiration of that period, the powers of the Council under this Part of this Act shall cease except so far as any works are then completed.

Application
of Public
Utilities
Street Works
Act, 1950.

37. The provisions of Part II of, and the Fourth Schedule to, the Public Utilities Street Works Act, 1950, shall apply in relation to the carrying out of Work No. 1 by this Act authorised and any works and conveniences authorised by section 23 (Power to construct bridges, etc., and to execute temporary works on railways), section 25 (Carriageway, footway and other works) or section 27 (Underpinning of houses near improvements) of this Act as if the said works or conveniences were works executed for road purposes within the meaning of paragraph (a) of subsection (1) of section 21 of that Act and were of the kind referred to in that section, and as if any apparatus situate within that part of Wimbledon Common as lies within the limits of deviation were in a street or in controlled land abutting on a street.

Notice to
commissioner
of police.

38.—(1) Before commencing the construction of any works forming part of the improvements so as to involve the temporary closing to vehicular traffic of any street or part of a street either absolutely or to the extent of one-third or more of the width of the carriageway the Council shall give not less than twenty-one days' notice in writing to the commissioner of police of the metropolis of their intention so to do and such notice shall specify the works to which the notice relates and the streets or parts of streets which will be closed in the course of the execution of the works.

(2) The Council shall make such arrangements with the said commissioner as shall be reasonably necessary so as to cause as little interference with vehicular traffic as may be reasonably practicable during the execution of the works.

For pro-
tection of
Postmaster-
General.

39.—(1) As soon as practicable after a street has been permanently stopped up or diverted by the Council under the powers conferred by this Act, the Council shall send by post to the Postmaster-General a notice informing him of such stopping up or diversion.

(2) Where in pursuance of section 22 (Power to make subsidiary works, etc.) or section 28 (Power to stop up street) of this Act the Council stop up or divert the whole or any portion of a street the following provisions of this subsection shall, unless otherwise agreed in writing between the Council and the Postmaster-General, have effect in relation to so much of any telegraphic line belonging to or used by the Postmaster-General as is under, in, upon, over,

along or across the land which by reason of the stopping up or diversion ceases to be a street or portion of a street (in this subsection referred to as "the affected line") that is to say:—

PART III
—cont.

- (a) The power of the Postmaster-General to remove the affected line shall be exercisable notwithstanding the stopping up or diversion so however that the said power shall not be exercisable as respects the whole or any part of the affected line after the expiration of a period of three months from the date of the sending of the notice referred to in subsection (1) of this section unless before the expiration of that period the Postmaster-General has given notice to the Council of his intention to remove the affected line or that part thereof, as the case may be;
- (b) The Postmaster-General may by notice in that behalf to the Council abandon the affected line or any part thereof and shall be deemed as respects the affected line or any part thereof to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it;
- (c) The Postmaster-General shall be entitled to recover from the Council the expense of providing in substitution for the affected line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the affected line a telegraphic line in such other place as he may require;
- (d) Where under paragraph (b) of this subsection the Postmaster-General has abandoned the whole or any part of the affected line it shall vest in the Council and the provisions of the Telegraph Acts, 1863 to 1954, shall not apply in relation to it as respects anything done or omitted after the abandonment thereof.

(3) The exercise by the Council of the powers conferred by section 31 (Power to stop up ways temporarily) of this Act in relation to any street or subway shall not prejudice or affect the right of the Postmaster-General—

- (a) to maintain, inspect, repair, renew or remove any telegraphic line belonging to, or used by, him under, in, upon, over, along or across that street or subway; or
- (b) for the purpose of such maintenance, inspection, repair, renewal or removal to enter upon that street or subway or break open that street.

(4) In this section the expression "telegraphic line" shall have the same meaning as in the Telegraph Act, 1878.

PART IV

EXTENSIONS OF TIME

Extension of
time for
compulsory
purchase of
lands by
Council.

40.—(1) The period now limited by the Act of 1958 for the exercise by the Council of powers for the compulsory purchase of lands—

- (a) in the boroughs of Kensington and Fulham for the purposes of subsection (1) of section 5 (Power to take lands) of the Act of 1936, except the lands in the borough of Fulham specified in Part I of the schedule to this Act;
- (b) in the boroughs of Poplar, Greenwich and Wandsworth for the purposes of section 5 (Power to Council to take lands) of the Act of 1938, except the lands in the borough of Poplar specified in Part II of the schedule to this Act;
- (c) in the borough of Hammersmith for the purposes of the Act of 1948, except the lands in that borough specified in Part III of the schedule to this Act; and
- (d) in the city of Westminster for the purposes of section 5 (Power to acquire lands) of the Act of 1958;

is hereby extended, or further extended, until the first day of October, nineteen hundred and sixty-four.

(2) Notwithstanding anything in subsection (1) of this section, if, at any time before the first day of January, nineteen hundred and sixty-four, the owner or lessee of any land to which that subsection relates gives to the Council notice in writing requiring them forthwith to decide whether or not they will proceed with the purchase of his estate or interest in any such land which is specified in the notice, the powers referred to in the said subsection shall not extend so as to enable the Council to purchase compulsorily the estate or interest of such owner or lessee in the land so specified, or in any part of such land, in pursuance of a notice to treat served later than six months after the receipt by the Council of the first-mentioned notice.

(3) If the Council give notification in writing to the owner or lessee of any land, being land to which this section relates and which is specified in the notification, that they do not intend to proceed with the purchase of the estate or interest of such owner or lessee in the land so specified, the powers referred to in this section, so far as they authorise the compulsory purchase of such estate or interest, shall cease forthwith.

41. The period now limited by the London County Council (General Powers) Act, 1956, for the completion of the works in the boroughs of Wandsworth, Poplar and Greenwich described in Part III of the Act of 1938, is hereby further extended until the first day of October, nineteen hundred and sixty-six.

PART IV
—cont.
Extension of
time for
completion
of works.

PART V

WHITE HART DOCK

42. In this Part of this Act—

Interpretation
of Part V.

“the dock” means the dock situate in the borough of Lambeth and shown on the deposited plans and includes the beds, hards and approaches provided in connection therewith and references to the dock include any part thereof;

“the subway” means the subway and works in connection therewith authorised by this Part of this Act.

43.—(1) Subject to the provisions of this Act, the Council and the Lambeth Council may, as from such date as may be agreed between those Councils, abandon and discontinue the maintenance and use of the dock, and thereafter they or either of them may remove any works connected therewith, and, as from the date of such abandonment and discontinuance, all the powers, duties and obligations whatsoever conferred or imposed upon the Council or the Lambeth Council with respect to or in connection with the dock shall cease.

Power to
abandon
White Hart
Dock.

(2) As from the abandonment and discontinuance of the use of the dock as provided for in subsection (1) of this section, any public or private rights which may exist over or in respect of the same shall be extinguished.

(3) If and when the dock shall have been abandoned and the use thereof discontinued under the powers conferred by this section, the site thereof may be used by the Council and (with the consent of the Council) the Lambeth Council for such purposes within their statutory powers and duties as they may think fit.

(4) Any person who suffers loss by the extinguishment of any private right under this section shall be entitled to be paid by the Lambeth Council compensation to be determined in case of dispute by the Lands Tribunal.

(5) As soon as may be after the dock has been abandoned and the use thereof discontinued under the powers contained in subsection (1) of this section, the Lambeth Council shall at their expense—

(i) drain the dock and, except so far as the same may be required for the purposes of the subway and as may

PART V
—*cont.*

otherwise be agreed between the Council and the Lambeth Council, fill in the dock in such manner and with such materials as shall have been previously approved in writing by the Council; and

- (ii) carry out, in such manner and with such materials as shall have been previously approved in writing by the Council, any works, whether to the river wall of the river Thames or elsewhere, necessary or otherwise consequent upon the abandonment and discontinuance of the use of the dock as provided by this section; and
- (iii) before draining the dock as aforesaid, relocate (if requested by the Council so to do), in such other position and in such manner in all respects as may be required by the Council, the existing tidal inlet connecting the dock with the Albert Embankment Pipe Sewer belonging to the Council.

Power to
construct
subway.

44.—(1) Subject to the provisions of this Part of this Act, the Lambeth Council may, in the borough of Lambeth in the line or situation and within the limits of deviation shown on the deposited plans and according to the levels shown on the deposited sections, make and maintain a subway for pedestrians (twenty-eight yards in length) passing under the Albert Embankment at an angle of about ninety degrees thereto at or near to the site of the dock together with all such approaches, stairs, ramps, passages, means of ingress or egress and subsidiary and incidental works as they may deem necessary or desirable.

(2) The Lambeth Council may, within the limits of deviation shown on the deposited plans, make junctions and communications with any existing street, subway or place adjacent to the subway.

(3) The Lambeth Council, before commencing to construct any part of the subway, shall leave at the principal office of the Council plans, sections and specifications thereof, and shall not commence any part of the subway until the Council shall have given their consent thereto in writing.

(4) The Lambeth Council shall comply with and conform to all reasonable orders, directions and regulations of the Council in the construction of the subway, and shall at their own expense make good all injury or damage caused by or resulting from the construction of the subway.

(5) The Lambeth Council shall, during the construction of the subway, give reasonable facilities for the chief engineer of the Council, or other officer of the Council duly appointed for the purpose by the said chief engineer, at all reasonable times to enter upon and inspect any part of the subway.

(6) The approval by the Council of any plans or the giving by them of any consent under the provisions of this section shall not

exonerate the Lambeth Council from any liability or affect any claim for damages under this section or otherwise or impose any liability on the Council.

PART V
—cont.

45. In constructing the subway the Lambeth Council may deviate laterally from the line or situation thereof to any extent within the limits of deviation shown on the deposited plans relating thereto, and vertically from the levels thereof defined on the deposited sections to any extent not exceeding ten feet upwards or to such extent as may be found necessary or convenient downwards.

Deviation
from line
and levels.

46.—(1) Subject to the provisions of this Act, the Lambeth Council may pump any water found by them in the draining of the dock and the making of the subway, and may use for the discharge of any such water the river Thames or any available stream or watercourse or any sewer or drain and for that purpose may, within the limits of deviation, lay down, take up and alter conduits, pipes and other works and make any convenient connections with the river Thames or any such stream, watercourse, sewer or drain:

Power to pump
water and
use sewers
for removing
water.

Provided that—

(a) the Lambeth Council shall not, under the powers of this section, discharge any water into any sewer or drain vested in or under the control of the Council except with the consent of the Council and subject to such terms and conditions (including the taking of steps to remove so far as may be reasonably practicable from water so discharged any gravel, soil or other solid substance or matter in suspension) as the Council may reasonably impose; and

(b) the Lambeth Council shall not, under the powers of this section, make any opening into any such sewer or drain save in accordance with plans reasonably approved by and under the superintendence (if given) of the Council.

(2) Any difference arising between the Lambeth Council and the Council under this section shall be settled by arbitration.

47. If the subway is not completed within five years from the first day of October nineteen hundred and sixty-one then, as from the expiration of that period, the powers of the Lambeth Council under section 44 (Power to construct subway) of this Act shall cease except so far as any works are then completed.

Period for
completion
of subway.

48.—(1) The provisions of the Public Utilities Street Works Act, 1950, shall apply and have effect in relation to the works authorised by section 43 (Power to abandon White Hart Dock) of this Act as if those works were works executed for road purposes

For protection
of certain
statutory
undertakers.

PART V
—cont.

within the meaning of, and mentioned in, paragraph (a) of subsection (1) of section 21 of the said Act of 1950.

(2) The provisions of section 36 (For protection of certain statutory undertakers in relation to Part III) of the London County Council (General Powers) Act, 1957 (except paragraph (4) of that section), shall extend and apply in relation to the subway as if it were one of the Strand subways referred to in that section.

Savings.

49. Nothing contained in this Part of this Act shall—

- (i) affect the operation of the Thames River (Prevention of Floods) Acts, 1879 to 1961, or diminish, alter or in any way affect the powers, rights, duties, responsibilities or obligations of any person or body under any of the provisions of those Acts;
- (ii) extend to prejudice, diminish, alter or take away any of the rights, powers or authorities vested in the Council in relation to sewers, and all such rights, powers and authorities shall be as valid and effectual as if this Act had not been passed;
- (iii) prohibit, defeat, alter or diminish any powers, authority or jurisdiction which at the time of passing of this Act the Port of London Authority did or might lawfully claim, use, or exercise under and by virtue of the Port of London Acts, 1920 to 1961, or otherwise.

PART VI

POPLAR BOROUGH COUNCIL (SUPERANNUATION)

Interpretation
of Part VI.

50. In this Part of this Act except as otherwise expressly provided or unless the context otherwise requires—

- “the principal Act” means the Poplar Borough Council (Superannuation and Pensions) Act, 1911;
- “the Act of 1953” means the Local Government Superannuation Act, 1953;
- “additional contributory payment” means a payment made under section 54 (Reckoning of further service) of the London County Council (General Powers) Act, 1933, section 95 (Service under other authorities) of the London County Council (General Powers) Act, 1937, or paragraph (2) or paragraph (3) of article 12 of the Poplar Borough Council (Superannuation) Scheme, 1938;
- “benefit” means a benefit which is or may be granted in accordance with the provisions of the local Act scheme;
- “capital value”, “contributions”, “contributor”, “remuneration”, “service”, “transfer value” and “war service” have the same meanings as in the scheme of 1955;

“ contributory employee ”, “ disqualifying break of service ”,
“ employment ”, “ local Act ”, “ local Act contributor ”
and “ officer ” have the same meanings as in the Act
of 1937;

“ the local Act scheme ” means the superannuation scheme
administered by the Poplar Council under or in
pursuance of the principal Act;

“ the scheme of 1955 ” means the Poplar Borough Council
(Superannuation) Scheme, 1955;

“ the superannuation fund ” means the fund maintained by
the Poplar Council under the local Act scheme;

and any other expressions to which meanings are assigned by
any enactment for the purposes of the local Act scheme shall,
unless the context otherwise requires, have the same respective
meanings.

51.—(1) Where for the efficient discharge of his duties a *Added years.*
contributor is required to possess professional or other qualifica-
tions and possesses such qualifications which he has not acquired
during employment with a local authority, the Poplar Council
may, if application for the purpose is made in accordance with
this section, consent to the adding of a number of years to his
service:

Provided that—

(a) this subsection shall not apply to a person—

(i) unless at the time of his first becoming a contri-
butor he had reached the age of twenty-seven years
but was not over the age of thirty-five years or such
age as results from the addition to the age of thirty-five
years of any period of war service undertaken by
him;

(ii) if, on first becoming a contributor, he was
entitled to reckon as a period of service any period
in which he had been employed before reaching the
age of twenty-seven years;

(iii) if he became entitled, by virtue of a deter-
mination made by the Poplar Council under the next
following section or by any other local authority
under subsection (6) of section 12 of the Act of 1937
or subsection (3) of section 7 of the Act of 1953 or
under any corresponding local Act provision, to take
into account in reckoning his service any period in
which he had before reaching the age of twenty-
seven years been in the employment of an officer of
a local authority;

PART VI
—cont.

(b) the number of years added shall not exceed ten years, or the number of years by which the age of the contributor at the time of his first becoming a contributor exceeds the age of twenty years, whichever is the less.

(2) An application by a contributor under this section shall be made in writing to the Poplar Council—

(a) in the case of a person who is a contributor at the passing of this Act, within six months thereafter;

(b) in any other case, within six months after the date on which he first becomes a contributor after the passing of this Act.

(3) Upon the giving of a consent under this section in respect of a contributor, the contributor shall be liable to pay into the superannuation fund, at such intervals as the Poplar Council may determine, by way of additional contributions in respect of each year added to his service, an amount in respect of all service thereafter up to the age of sixty years equal to such percentage of his remuneration for the time being as would be payable if he were a person to whom regulation 12 of the Local Government Superannuation (Benefits) Regulations, 1954, or any enactment amending or replacing the same, applied:

Provided that—

(a) if the contributor ceases to hold his employment on the ground that he is, in the opinion of the Poplar Council, permanently incapable of efficiently discharging his duties by reason of ill-health or infirmity of mind or body, or has a disqualifying break of service, or dies before reaching the age of sixty years, no further sum shall be payable under this subsection;

(b) the Poplar Council may, if they think fit, reduce by not more than one-third the percentage applicable in the case of the contributor, and if they do so the reduction shall operate so long as he remains liable to make payments under this subsection.

(4) If the aggregate of the amount payable by the contributor under the last foregoing subsection by way of additional contributions and the amount payable by him into the superannuation fund by way of contributions under the local Act scheme exceeds fifteen per centum of his remuneration, he shall satisfy his liability in respect of the excess over fifteen per centum by payment (either in a lump sum or by way of such instalments payable at such times as may be agreed between him and the Poplar Council) of a sum certified by the government actuary to represent the capital value of the excess.

(5) Any amount payable by a contributor under subsection (3) of this section shall be recoverable either by deduction from his

remuneration or otherwise in like manner and shall be returnable in the like circumstances as if any amounts so payable were such contributions as are referred to in section 13 (Obligation of officers to contribute) of the principal Act, and during any period during which by virtue of section 14 (Scale of contributions) of the principal Act a contributor who suffers a reduction in his salary or wages and emoluments continues to contribute to the superannuation fund the like amount as if they had not been reduced, the amount payable by the contributor under subsection (3) of this section shall be the amount which would have been so payable if his salary or wages and emoluments had not been reduced.

(6) A contributor shall be entitled if he complies with the requirements of this section to reckon years added to his service by a consent under this section as years of service:

Provided that—

(a) any years so added shall not be so reckonable—

(i) if the contributor fails to pay any amount payable by him under subsection (3) or subsection (4) of this section; or

(ii) if the contributor leaves the employment of the Poplar Council before the expiration of a period, beginning with the giving of the consent, equal to one-half of such period as may be specified in the consent and the Poplar Council, before a transfer value is paid in respect of the contributor, resolve that the years so added shall not be so reckonable and return to him a sum equal to the aggregate of the amounts paid by him under this section; or

(iii) if by virtue of such a determination as is referred to in sub-paragraph (iii) of paragraph (a) of the proviso to subsection (1) of this section, made after the Poplar Council have given a consent under this section, the contributor becomes entitled to reckon as a period of service of one-half of its actual length any period in which he had been employed before reaching the age of twenty-seven years; or

(iv) for the purpose of determining whether any benefit is payable to or in respect of a contributor;

(b) any years so added shall not in any circumstances be reckonable as a period of service of one-half of its actual length.

52.—(1) Where a person who has been for a continuous period of not less than three years in the employment of an officer of a local authority, and engaged wholly or mainly in the performance of duties relating to the functions of that local authority, becomes

Reckoning
of indirect
service.

PART VI
—cont.

a contributor, there shall be taken into account in reckoning his service so much, if any, of that period as the Poplar Council may determine within one year from the date on which he becomes a contributor.

(2) If the following conditions are fulfilled with respect to any person who is a contributor at the date of the passing of this Act (that is to say):—

- (a) that he has been for a continuous period of not less than three years in the employment of an officer of a local authority and engaged wholly or mainly in the performance of duties relating to the functions of that local authority; and
- (b) that he has subsequently entered the employment of that or some other local authority; and either
- (c) that the first local authority under whom he became a contributory employee or local Act contributor has not made a determination in pursuance of subsection (6) of section 12 of the Act of 1937, or of a corresponding local Act provision, that the whole of the period aforesaid shall be taken into account in reckoning his service; or
- (d) that such a determination has been made but he is a person to whom subsection (2) of section 7 of the Act of 1953 applies;

then the Poplar Council may within one year from the date of the passing of this Act—

- (i) in a case where a determination has been made in pursuance of the said subsection (6), or corresponding local Act provision, that part only of that period shall be so taken into account, determine that the whole or any additional part of that period shall be so taken into account; or
- (ii) in any other case determine that the whole or any part of that period shall be so taken into account.

(3) Subsection (2) of section 7 of the Act of 1953 and subsection (4) of section 3 of the Local Government Staffs (War Service) Act, 1939, shall with any necessary modifications apply for the purposes of the foregoing provisions of this section as they apply for the purposes of subsection (6) of section 12 of the Act of 1937, as if references in the said subsection (2) and the said subsection (4) to the said subsection (6) included references to this section.

(4) Subject to the provisions of the next following section, any period taken into account in reckoning the service of a

contributor by virtue of a determination made under subsection (1) or subsection (2) of this section shall, for all purposes of the local Act scheme other than for the purpose of determining whether he is entitled to receive a benefit, be reckoned as a period of service of one-half of its actual length.

PART VI
—cont.

53.—(1) Not later than one month after the making of a determination under subsection (1) or subsection (2) of the last foregoing section the contributor in relation to whom the determination was made may notify the Poplar Council in writing that he wishes the provisions of this section to apply for the purposes of that determination in lieu of the provisions of subsection (4) of the last foregoing section.

Further provisions
as to
determinations
under
foregoing
section.

(2) Where such a notification as aforesaid is given, any period taken into account in reckoning the service of the contributor by virtue of the said determination shall be treated for all purposes of the local Act scheme as if it were a period of service of its actual length to which the provisions of section 95 (Service under other authorities) of the London County Council (General Powers) Act, 1937, applied, and as if the determination made under the last foregoing section were a determination made by the Poplar Council under subsection (1) of the said section 95.

(3) The said section 95 shall apply for the purpose of reckoning any period in pursuance of the provisions of this section as it applies for the purpose of aggregating and reckoning the periods of service specified in paragraphs (a) to (c) of subsection (1) of that section, subject to the following modifications:—

- (i) for any reference in that section to the appointed day there shall be substituted a reference to the date of the passing of this Act; and
- (ii) paragraphs (ii) and (iii) of the proviso to subsection (1) and the proviso to subsection (2) of that section shall not apply.

(4) In subsection (1) of the said section 95 for the words “the Act of 1911 and of this Part of this Act” there shall be substituted the words “the local Act scheme as defined in section 50 (Interpretation of Part VI) of the London County Council (General Powers) Act 1961”.

54.—(1) In the first subsection of section 5 (Scale of super-annuation allowances) of the principal Act—

Amendment
of section 5
of principal
Act.

- (a) for the words “the average amount of his annual salary or wages and emoluments during the five years ending on the day on which he ceases to hold his office or employment” there shall be substituted the words

PART VI
—cont.

“ his average remuneration as defined in article 4 of the Poplar Borough Council (Superannuation) Scheme 1955 ”; and

- (b) for the words “ such average amount ” in both places where they occur there shall be substituted the words “ such average remuneration ”.

(2) In subsection (2) of the said section 5—

- (a) for the words “ the average annual amount of his salary or wages and emoluments during the five years ending on the day on which he ceases to hold his office or employment ” there shall be substituted the words “ his average remuneration as defined in article 4 of the Poplar Borough Council (Superannuation) Scheme 1955 ”;
- (b) for the words “ such average annual amount ” wherever they occur there shall be substituted the words “ such average remuneration ”; and
- (c) for the words from “ And in addition thereto ” to the end of the subsection there shall be substituted the words—

“ And in addition thereto (in each case) a lump sum (to be paid out of the superannuation fund) equal to—

(i) one-thirtieth of such average remuneration multiplied by the number of completed years of his service ; and

(ii) one-twelfth of one-thirtieth of such average remuneration for each completed month of his service beyond such number of completed years as aforesaid.”

Reckoning
of previous
service on
re-employ-
ment by
Poplar
Council.

55. Where a contributor ceases to be employed by the Poplar Council in such circumstances that no benefit or transfer value becomes payable to or in respect of him, but within twelve months after so ceasing he again becomes a contributor, he shall be entitled to reckon as service for the purposes of the local Act scheme all service which he was entitled to reckon as such (including any period in respect of which additional contributory payments or additional contributions in respect of added years were being paid by him) immediately before he ceased to be employed by them:

Provided that—

- (i) he shall not be entitled to reckon any period of service as aforesaid unless within three months after again becoming a contributor he undertakes to pay, and subsequently pays, into the superannuation fund an amount equal to any sum which upon or after his ceasing

to hold his former employment was paid to him by way of return of contributions together with interest thereon (if any);

- (ii) any period in respect of which an additional contributory payment was being made by the contributor immediately before he ceased to hold his former employment shall not be reckonable as service unless he makes such payments into the superannuation fund as may be agreed by the Poplar Council as equivalent in amount to the value of the payments which he would have been liable to make had he continued in that employment;
- (iii) if immediately before he ceased to hold his former employment he was in course of paying additional contributions under subsection (3) of section 51 (Added years) of this Act in respect of a period of added years, he shall be liable to pay additional contributions in accordance with the provisions of that section as if he had not ceased to be a contributor, unless he ceased to hold his former employment in such circumstances that, in accordance with the provisions of sub-paragraph (ii) of paragraph (a) of the proviso to subsection (6) of the said section 51, the period of added years ceased to be reckonable.

56. Where a contributor has been for any period—

Reckoning
of certain
periods of
employment
for eligibility
for benefits.

- (a) employed by the Poplar Council or by any other local authority or by a public authority or as a civil servant, and that period is not reckonable as service for the purposes of the local Act scheme; or
- (b) in the employment of an officer of a local authority and engaged wholly or mainly in the performance of duties relating to the functions of that authority, and that period is not reckonable as service for the purposes of the local Act scheme; or
- (c) in any employment, and is entitled to reckon that period for the purposes of the local Act scheme as if it were a period of service of one-half of its actual length;

then that period of employment shall (if it is not so treated apart from this section) be treated for the purpose of determining whether he is entitled to receive a benefit (but for no other purpose) as if it were a period of service of its actual length:

Provided that the references in the foregoing provisions of this section to any period of employment do not include references to any period of employment which had been, or would have been, reckonable as a period of service but which ceased to be, or did not become, so reckonable by virtue of some forfeiture provision in the local Act scheme or in any other enactment.

PART VI
—cont.

Power to reckon certain periods of employment in calculation of benefits.

57.—(1) The Poplar Council may, on any benefit becoming payable to or in respect of any contributor, resolve that in the calculation of benefits the whole or a specified part of any such period of employment as is referred to in paragraphs (a) to (c) of the last foregoing section shall be treated as if it were a period of service of its actual length:

Provided that no period of employment shall be so treated which has been or may be aggregated and reckoned for the purpose of superannuation allowances or gratuities under any Act other than—

- (i) the National Insurance Acts, 1946 to 1960, and
- (ii) the Poplar Borough Council (Superannuation) Acts, 1911 to 1961,

or under any scheme made under any Act other than the said Acts of 1946 to 1960 and of 1911 to 1961.

(2) The Poplar Council shall repay into the superannuation fund each year an amount equal to the total of the amounts, if any, which during that year were paid from the superannuation fund as a result of a resolution under the foregoing subsection.

Reduction of superannuation allowance during re-employment, and adjustment of rights thereafter.

58.—(1) In this section—

“prescribed” means prescribed by regulations (as having effect for the purposes of this section by virtue of subsection (5) of this section) made by the Minister of Housing and Local Government for the purposes of subsection (2) of section 31 of the Act of 1937;

“superannuation allowance” includes a retirement pension and an injury allowance.

(2) If a person entitled to a superannuation allowance under the local Act scheme proposes to accept further employment with any local authority (other than the Poplar Council) he shall inform the local authority that he is so entitled and, if he enters their employment, shall forthwith give notice in writing that he is so employed to the Poplar Council.

(3) In any case where a person enters any such further employment as is referred to in the last foregoing subsection, or in any case where a person so entitled to a superannuation allowance accepts further employment with the Poplar Council, the superannuation allowance shall, so long as the employee holds his new employment, be reduced in such manner as may be prescribed.

(4) The foregoing provisions of this section shall apply in lieu of the provisions of section 18 (Case of subsequent appointment) of the principal Act in respect of any further employment entered into after the passing of this Act.

(5) For the purposes of this section the Local Government Superannuation (Reduction and Adjustment of Superannuation

Allowance) Regulations, 1954, shall have effect and shall apply in any such case as is referred to in subsection (3) of this section as if—

PART VI
—cont.

(i) for the words “subsection (1) of section 31 of the Act of 1937” wherever they occur therein there were substituted the words “section 58 of the London County Council (General Powers) Act, 1961,”;

(ii) for the words “subsection (5) of section 6 of the Act of 1937” in paragraph (3) of regulation 4 thereof there were substituted the words “the proviso inserted in section 14 (Scale of contributions) of the Poplar Borough Council (Superannuation and Pensions) Act, 1911, by subsection (6) of section 53 (Amendment of Act of 1911) of the London County Council (General Powers) Act, 1933,”;

(iii) for sub-paragraph (iv) of the proviso to paragraph (1) of regulation 5 thereof there were substituted the following sub-paragraph:—

“(iv) in his new employment he is a contributory employee or a local Act contributor otherwise than under the local Act scheme administered by the Poplar Metropolitan Borough Council,”; and

(iv) for the words “contributory employee” in regulation 8 thereof there were substituted the words “contributor under the local Act scheme administered by the Poplar Metropolitan Borough Council”;

and any regulations amending or replacing the said regulations of 1954 shall have effect subject to similar modifications.

59. The following provisions of the principal Act are hereby repealed:—

Repeal of
certain
provisions
in principal
Act.

In paragraph (A) of subsection (1) of section 4 (Title of officers to superannuation allowances) the words “(other than permanent incapacity due to an injury in respect of which he receives compensation under the Workmen’s Compensation Act 1906 or any scheme made thereunder)”;

The proviso to subsection (1) of the said section 4.

60. This Part of this Act shall be read and construed as one with the Poplar Borough Council (Superannuation) Acts, 1911 to 1952, and those Acts and this Part of this Act may be cited together as the Poplar Borough Council (Superannuation) Acts, 1911 to 1961.

Construction
and citation
of Part VI.

PART VII

WESTMINSTER CITY COUNCIL (SUPERANNUATION)

61. In this Part of this Act except as otherwise expressly provided or unless the context otherwise requires—

Interpretation
of Part VII

“the Act of 1909” means the Westminster City Council (Superannuation and Pensions) Act, 1909;

PART VII
—cont.

“ the appointed day ” means the first day of April, nineteen hundred and sixty-two;

“ contributions ” includes any sum which under the local Act scheme is treated as contributions;

“ contributor ” means a person who is entitled to participate in the benefits of the superannuation and pension fund established and administered by the Westminster Council under the next following section;

“ the former pension fund ” means the pension fund which, immediately before the appointed day, was administered by the Westminster Council under section 27 (Pension fund) of the Act of 1909;

“ the former superannuation fund ” means the superannuation fund which, immediately before the appointed day, was administered by the Westminster Council under section 16 (Superannuation fund) of the Act of 1909;

“ the local Act scheme ” means the superannuation and pension scheme administered by the Westminster Council under or in pursuance of the Act of 1909;

“ transfer value ” includes any payment in the nature of a transfer value;

and any other expressions to which meanings are assigned by any enactment for the purposes of the local Act scheme shall, unless the context otherwise requires, have the same respective meanings.

Amalgama-
tion of
former
superannua-
tion and
pension
funds.

62.—(1) The Westminster Council shall, on the appointed day, close the former superannuation fund and the former pension fund, and (in lieu thereof) establish and thereafter administer a superannuation and pension fund (hereinafter in this section referred to as “ the fund ”) to which shall be carried and credited—

(a) any moneys standing to the credit of, and all other assets of, the former superannuation fund and of the former pension fund;

(b) such sum (in this and the next following section referred to as “ the primary annual contribution ”) to be raised annually in and by the general rate as is for the time being certified as the primary annual contribution in accordance with the provisions of section 17 (Actuarial investigation) of the Act of 1909;

(c) all contributions, transfer values and other sums payable into the fund by or in respect of contributors in pursuance of the provisions of the local Act scheme ;

(d) all dividends and interest arising out of the investment of the fund or any part thereof;

- (e) such amount out of the general rate as may from time to time be required to meet any deficiency on the fund; and
 - (f) any other sums which the Westminster Council may become liable to carry to the fund in pursuance of the provisions of the local Act scheme.
- (2) There shall be charged upon the fund—
- (a) all outstanding or continuing liabilities of the former superannuation fund and of the former pension fund;
 - (b) superannuation allowances, benefits and pensions payable out of the fund in pursuance of the provisions of the local Act scheme; and
 - (c) any transfer value and contributions or parts of contributions payable or returnable out of the fund in pursuance of the provisions of the local Act scheme.

63.—(1) Section 16 and section 27 of the Act of 1909 are hereby repealed, and references in any enactment or in any document to the superannuation fund established and administered by the Westminster Council under the said section 16, or to the pension fund established and administered by them under the said section 27, shall be construed as references to the superannuation and pension fund established and administered by them under the last foregoing section. Consequential amendments and repeals, etc.

(2) For the avoidance of doubt it is hereby declared that, until such time as the first certification of the primary annual contribution made under section 17 of the Act of 1909 after the appointed day has effect in relation to the superannuation and pension fund established under the last foregoing section, references in the said section 17 and in the last foregoing section to the primary annual contribution to be paid into the said superannuation and pension fund shall be deemed to be references to an amount equal in any year to the sum of the primary annual contributions which in the last year preceding the appointed day the Westminster Council were required to pay into the former superannuation fund and into the former pension fund in pursuance of the provisions of the said section 17.

(3) In section 17 of the Act of 1909 for the words “ paragraphs (A) (B) and (C) of subsection (1) of the immediately preceding section ” there shall be substituted the words “ paragraphs (a) to (d) of subsection (1) of section 62 (Amalgamation of former superannuation and pension funds) of the London County Council (General Powers) Act 1961 ”.

(4) In section 3 (Interpretation) of the Act of 1909 the definitions of “ Superannuation fund ” and “ Pension fund ”, and in section 29 (Application of certain sections of Part II) of that Act the words “ Actuarial investigation ”, “ Investment of

PART VII
—cont.

superannuation fund”, “Application of provisions of Friendly Societies Act 1896”, “pension fund” and “superannuation fund”, are hereby repealed.

(5) The foregoing provisions of this section shall come into operation on the appointed day.

Repeal of
section 11 of
Act of 1909.

64. Section 11 (Notice of proposal to return contributions or grant gratuity) of the Act of 1909 is hereby repealed.

Construction
and citation
of Part VII.

65. This Part of this Act shall be read and construed as one with the Act of 1909, and the Act of 1909, Part IV (Superannuation and Pensions) of the Westminster City Council (General Powers) Act, 1921, and this Part of this Act may be cited together as the Westminster City Council (Superannuation and Pensions) Acts, 1909 to 1961.

PART VIII

MISCELLANEOUS

Application
of Thames
Floods Acts
to certain
water
circulating
plant, etc.

66.—(1) In this section—

“an installation to which this section applies” means—

(i) any pipe, tunnel or culvert (or any part thereof);
and

(ii) any shaft, chamber, well, tank or similar structure
or container (or any part thereof),

which is below the flood defence level of the river Thames
and which is used or intended to be used for or in
connection with the abstraction of water from or the
return of water to that river;

“the principal Acts” means the Thames River (Prevention
of Floods) Acts, 1879 to 1957.

(2) For the purposes of this section an installation situated
on or in any lands or premises shall be deemed to be below the
flood defence level of the river Thames if or in so far as it is
situated below the level of the flood works for the time being
prescribed by the Council for the protection (inter alia) of those
lands or premises in pursuance of their powers under the principal
Acts.

(3) Notwithstanding that an installation to which this section
applies is not for the protection of lands within the metropolis
from floods or inundations caused by the overflow of the river
Thames, the principal Acts shall extend and apply in relation to
any such installation as if—

(i) it were a bank within the meaning of those Acts; and

(ii) the entire or partial construction, alteration or reconstruc-
tion of such installation in the same or any altered
position, or the repairing, raising, strengthening,
improvement or removal thereof, constituted flood
works within the meaning of those Acts.

(4) Subject to the provisions of the last foregoing subsection, the principal Acts shall have effect as if—

PART VIII
—cont.

- (a) any reference therein to floods or inundations caused by the overflow of the river Thames included a reference to floods or inundations caused by the overflow or escape of water from that river from or through an installation to which this section applies;
 - (b) any reference therein to a temporary or movable dam included a reference to any dam, gate, sluice, valve or other like apparatus or appliance which is used or intended to be used for the purpose of regulating or controlling the passage of water from the river Thames in or through an installation to which this section applies.
- (5) In relation to an installation to which this section applies—
- (a) section 9 (Powers of Board as to flood works of a temporary character) of the Metropolis Management (Thames River Prevention of Floods) Amendment Act, 1879, shall have effect as if for the words from the beginning of the section to “works of a fixed or permanent character” there were substituted the words “As part of or in connection with any installation to which section 66 (Application of Thames Floods Acts to certain water circulating plant etc.) of the London County Council (General Powers) Act 1961 applies the London County Council may”;
 - (b) section 46 (Board may authorise continuance of existing temporary flood works) of the Metropolitan Board of Works (Various Powers) Act, 1882, shall have effect as if for the words from the beginning of the section to “the river side of such premises” there were substituted the words “When on any premises a temporary or movable dam has been erected or provided without the authority of the London County Council as part of or in connection with any installation to which section 66 (Application of Thames Floods Acts to certain water circulating plant etc.) of the London County Council (General Powers) Act 1961 applies the said Council may if they think fit”; and
 - (c) subsection (1) of section 56 (Replacement of temporary or movable dams by permanent works) of the London County Council (General Powers) Act, 1957, shall have effect as if for the words “without materially interfering with the transaction of any business carried on on the riverside of those premises” there were substituted the words “by reason of the disuse or abandonment of any installation to which section 66 (Application of Thames Floods Acts to certain water circulating plant etc.) of the London County Council (General Powers) Act 1961 applies”.

PART VIII
—cont.

(6) Nothing in this section shall—

- (a) apply to any installation which is both owned and maintained by the Port of London Authority; or
- (b) prohibit, defeat, alter or diminish any powers, authority or jurisdiction which at the time of the passing of this Act the Port of London Authority did or might lawfully claim, use or exercise under and by virtue of the Port of London Acts, 1920 to 1961, or otherwise.

(7) The principal Acts and this section may be cited together as the Thames River (Prevention of Floods) Acts, 1879 to 1961.

Electronic or
mechanical
accounting
equipment.

67.—(1) At any time after the Council or a borough council have provided any electronic or mechanical accounting equipment for the purposes of all or any of their accounting work the Council or the borough council, as the case may be, may, by agreement with any other person, use or permit that other person to use the equipment provided by them for the purposes of that other person, and may make such charges as may be agreed for the use of the said equipment.

(2) In accordance with the terms of any agreement made in pursuance of the powers conferred by the foregoing subsection, the Council or a borough council, as the case may be, may provide and make charges for any facilities and services ancillary to the use of the said equipment.

Improvement
of neglected,
etc., land by
borough
councils.

68.—(1) Where it appears to a borough council that any land within the borough is, by reason of its being derelict, neglected or unsightly, in such a condition as to be detrimental to the amenities of the locality in which the land is situated, the borough council may, subject to the provisions of this section, at all reasonable times enter on such land and carry out such works and do such other things as they may consider expedient for the purpose of restoring or improving and thereafter preserving the appearance of such land.

(2) Before the borough council enter on any land for the purpose of carrying out such works or doing such other things as are referred to in the foregoing subsection they shall serve on the owner and on the occupier of the land notice of their proposals for restoring or improving and thereafter preserving the appearance of such land and any owner or occupier aggrieved by such proposals may, within twenty-eight days from the date of the service of the notice on him, appeal to a magistrates' court.

(3) Where the borough council have served notice of their proposals as respects any land under subsection (2) of this section, they shall not proceed with those proposals unless—

- (a) none of the persons on whom the notice was served has within twenty-eight days from the date of the service

of the notice on him commenced to restore, improve or preserve the land in accordance with the proposals of the borough council or, if any such person has so commenced, he has thereafter failed with all diligent dispatch to complete the work of restoration, improvement or preservation; or

(b) if any person on whom the notice was served has appealed in accordance with the said subsection (2), the appeal is dismissed or abandoned or fails for want of prosecution.

(4) An appeal against the decision of a magistrates' court under this section may be brought to a court of quarter sessions by the appellant or the borough council.

(5) The powers conferred by subsection (1) of this section do not include power to erect or maintain or to do any works or other things in or upon any building:

Provided that this subsection shall not prevent the erection or maintenance by a borough council of such hoarding or fence on any land in pursuance of the said powers as they may consider expedient.

(6) A person authorised by a borough council to enter upon any land in pursuance of the power conferred by this section shall, if so required, produce evidence of his authority before so entering, and shall not demand admission as of right to any land which is occupied unless twenty-four hours' notice of the intended entry has been given to the occupier.

(7) Where entry is made upon any land under this section, any person interested in the land may recover from the borough council compensation in respect of any depreciation in the value of his interest attributable to any damage occasioned by the exercise of the powers conferred by this section, and in respect of any disturbance of his enjoyment of the land so occasioned, and any dispute arising as to the amount of such compensation shall be determined by the Lands Tribunal.

(8) Any materials removed from land by a borough council in the exercise of the powers conferred by this section may be dealt with or disposed of in such manner as the borough council think fit:

Provided that where any materials are removed as aforesaid, the borough council shall account to the owner in respect of the value of those materials after deducting the cost of their removal and disposal.

(9) In the exercise of the powers of this section a borough council shall not enter on or carry out works on land held or used for the purposes of their undertaking by any railway undertakers without the consent of those undertakers.

(10) Notwithstanding anything contained in subsection (4) of section 89 of the National Parks and Access to the Countryside

PART VIII
—cont.

Act, 1949, the enactment of the foregoing provisions of this section shall not limit or affect the powers exercisable by or on behalf of the local planning authority in the administrative county of London in pursuance of the provisions of the said section 89.

Provision
of meals for
invalids, etc.

69.—(1) In this section—

“invalid meals service” means a service for the provision of food and nourishment, either in their homes or elsewhere, for persons for whom special nourishment or a special diet is for the time being prescribed or recommended by any registered medical practitioner by reason of their physical condition or present or past illness or disability;

“voluntary organisation” means a body the activities of which are carried on otherwise than for profit, but does not include any public or local authority.

(2) A borough council may—

(i) provide or make such other arrangements as they may from time to time determine for the provision of an invalid meals service in the borough, and may employ as their agent for the purposes of this paragraph any voluntary organisation whose activities consist of or include the provision of an invalid meals service;

(ii) recover from persons availing themselves of any service provided in pursuance of the foregoing paragraph such charges (if any) as, having regard to the cost of the service, the borough council may determine, whether generally or in the circumstances of any particular case;

(iii) make contributions to the funds of any voluntary organisation whose activities consist of, or include, the provision of an invalid meals service in the borough.

(3) Any two or more borough councils may by agreement combine for the purpose of their functions under paragraph (i) or paragraph (ii) of the last foregoing subsection and, for the purpose of giving effect to such an agreement, a borough council may exercise or join in the exercise of the said functions in, or in relation to, any borough the borough council of which is a party to the agreement.

(4) This section shall apply to the city of London, and shall have effect in relation thereto as if the references therein to a borough included references to the said city, and the references therein to a borough council included references to the common council.

Provision of
transport
service at
Islington and
Saint Pancras
Cemetery.

70.—(1) The Islington Council and the Saint Pancras Council (hereinafter in this section referred to as “the borough councils”) may enter into and carry into effect agreements under which

they may combine together for the following purposes (that is to say):—

PART VIII
—cont.

(a) to provide and maintain omnibuses or other vehicles and to use such vehicles for the purpose of operating a service (hereinafter in this section referred to as “the transport service”) for the carriage of passengers on routes which are contained wholly within the boundaries of the two cemeteries known jointly as the Islington and Saint Pancras Cemetery and situate in the borough of Finchley in the county of Middlesex; or

(b) to enter into arrangements with any other person for the provision by that other person of a service for the carriage of passengers on such routes as aforesaid;

and any such agreement between the borough councils may provide for the exercise by one of them of all or any of the powers which may be exercised by the borough councils in combination in pursuance of the provisions of this section.

(2) Without prejudice to the generality of their powers under the foregoing subsection the borough councils may, in accordance with the terms of any agreement made thereunder,—

(a) provide and maintain all such apparatus and things, and do all such things, as are in their opinion necessary for, or reasonably incidental to, the provision, maintenance and operation of the transport service;

(b) make such charges (if any) for the use by persons of the transport service as they may from time to time determine, including different charges for different classes or descriptions of persons; and

(c) make byelaws jointly under their common seals with respect to the use and operation of the transport service.

(3) For the avoidance of doubt it is hereby declared that section 147 of the Act of 1939 shall apply with any necessary modifications and adaptations to any byelaws made by the borough councils under paragraph (c) of the last foregoing subsection, and the confirming authority in relation to those byelaws shall be the Minister of Transport.

71.—(1) In this section the specified lands means the lands in the borough of Chelsea shown by pink colour on the plan signed in quadruplicate by the Right Honourable the Lord Merthyr, the chairman of the committee of the House of Lords to whom the Bill for this Act was referred, one copy of which has been deposited in the office of the Clerk of the Parliaments, House of Lords, one copy in the Private Bill Office of the House of Commons, one copy with the clerk of the Council and one copy with the town clerk of the borough of Chelsea.

Provision
of shops by
Chelsea
Council.

(2) The Chelsea Council may provide and maintain shop premises on the ground level of any of the specified lands which

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—cont.

have been acquired or appropriated by them for the provision of offices or other buildings in pursuance of their powers under section 155 of the Act of 1939, and may, notwithstanding anything contained in any enactment, lease or let any shop premises so provided on such terms and conditions as they think fit.

Calculation
of pensions,
etc., of
certain
servants of
Paddington
Council.

72.—(1) In this section—

“ the Act of 1911 ” means the Paddington Borough Council (Superannuation and Pensions) Act, 1911;

“ the fund ” means the superannuation fund maintained by the Paddington Council under Part I of the Act of 1937;

“ relevant remuneration ”, in relation to a servant to whom this section applies, means (subject to the provisions of subsection (6) of this section) a sum amounting to one-thirteenth of the aggregate of his remuneration for the period comprising the last thirteen complete weeks of his service preceding the day on which he resigns or otherwise ceases to hold his employment;

“ remuneration ” has the same meaning as in the Act of 1937;

and any reference in this section to an enactment in the Paddington Borough Council (Superannuation and Pensions) Acts, 1911 to 1936, shall be deemed to be a reference to that enactment as modified and applied by the Paddington Metropolitan Borough Council (Superannuation) Scheme, 1955, in relation to a servant of the Paddington Council, who, in pursuance of the provisions of the said scheme of 1955, opted under regulation 17 of the Local Government Superannuation (Benefits) Regulations, 1954, to retain the rights previously enjoyed by him.

(2) This section applies in relation to a servant who, on resigning or otherwise ceasing to hold his employment with the Paddington Council on or after the date of the passing of this Act, is, or will be, entitled to a pension in pursuance of the provisions of section 24 (Title of servants to pensions) of the Act of 1911.

(3) In relation to a servant to whom this section applies—

(a) the provisions of this section shall have effect in substitution for the provisions of section 25 (Scale of pensions) of the Act of 1911; and

(b) any reference in any enactment (except subsection (7) of section 42 (Amendment of Paddington Borough Council (Superannuation and Pensions) Act 1911) of the London County Council (General Powers) Act, 1928) to the said section 25 shall be deemed to be a reference to this section; and

(c) in section 24 (Title of servants to pensions) of the Act of 1911 for the words “ according to the scale by this Act provided ” there shall be substituted the words “ calculated in accordance with the provisions of

subsections (4) and (6) of section 72 (Calculation of pensions, etc., of certain servants of Paddington Council) of the London County Council (General Powers) Act 1961”.

PART VIII
—cont.

(4) The pension of a servant to whom this section applies shall be such weekly sum as results from multiplying one-sixtieth of his relevant remuneration by the number of years of service which he has completed:

Provided that in calculating the said one-sixtieth of his relevant remuneration any resulting fraction of one penny shall be deemed to be one penny.

(5) If the remuneration of a servant to whom this section applies is—

(a) reduced for any reason other than his absence from duty owing to ill-health or injury or other than his own misconduct, or

(b) discontinued during his absence from duty for any reason other than misconduct,

he shall be entitled to continue to contribute to the fund at the same rate as he would have contributed but for the reduction or discontinuance.

(6) Where a servant to whom this section applies has for any period—

(a) on reduction or discontinuance of his remuneration contributed under the last foregoing subsection as if his remuneration had not been reduced or discontinued, or

(b) suffered a reduction or discontinuance of his remuneration by reason of his absence from duty owing to ill-health or injury,

then, for the purpose of computing his relevant remuneration, he shall be deemed, as respects that period, to have received the remuneration which he would have received but for the reduction or discontinuance.

(7) This section shall be read and construed as one with the Paddington Borough Council (Superannuation and Pensions) Acts, 1911 to 1936, and those Acts, section 10 (Amendment of Paddington Borough Council (Superannuation and Pensions) Acts 1911 to 1936) of the London County Council (General Powers) Act, 1938, and this section may be cited together as the Paddington Borough Council (Superannuation and Pensions) Acts, 1911 to 1961.

PART IX

SUPPLEMENTAL

73. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act, 1947, for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act. Saving for town and country planning.

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—cont.

Crown rights.

74. Nothing in this Act affects prejudicially any estate, right, power, privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing herein contained authorises the Council or a borough council to take, use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose.

For pro-
tection of
British
Transport
Commission.

75. For the protection of the British Transport Commission (in this section referred to as “the commission”) the following provisions shall, unless otherwise agreed in writing between the Council and the commission, apply and have effect:—

(1) In this section—

“railway property” means the railways, tunnels and railway works of the commission and includes the lands in the borough of Hampstead numbered 78 on the deposited plans in that borough;

“the works” means so much of the works authorised by Part III of this Act as may be situated upon, across, under or over or within fifty feet measured in any direction from railway property;

“the engineer” means an engineer to be appointed by the commission:

(2) The Council shall not under the powers of this Act (except as provided in this section) acquire compulsorily any railway property but they may acquire such easements and rights in any railway property as they may reasonably require for the purposes of the works:

(3) The Council shall, before commencing the works, furnish to the commission proper and sufficient plans, sections and particulars thereof for the approval of the engineer, which approval shall not be unreasonably withheld, and shall not commence the works until such plans, sections and particulars shall have been approved by the engineer or, in case of difference between the engineer and the Council, until they shall have been settled by arbitration:

Provided that if within twenty-eight days after such plans, sections and particulars have been furnished to the commission the engineer shall not have intimated his approval or disapproval thereof he shall be deemed to have approved them:

(4) If within twenty-eight days after such plans, sections and particulars have been furnished to the commission, the

commission shall give notice to the Council that in consequence of the nature of the works it is reasonably necessary that the commission should themselves construct any part of the works then, if the Council desire that part of the works to be constructed, the commission shall construct it with all reasonable dispatch on behalf of, and to the reasonable satisfaction of, the Council in accordance with the plans, sections and particulars approved or deemed to be approved or settled as aforesaid (hereinafter in this section called "the approved plans") and may recover the reasonable cost of so doing from the Council:

- (5) Upon signifying his approval or disapproval of plans, sections and particulars of the works the engineer may specify any temporary or permanent protective works which should be carried out before the commencement of the works to ensure the stability of railway property or protect it from injury or to avoid delay or inconvenience to railway passengers and such temporary or permanent protective works as may be reasonably necessary for those purposes shall be constructed by the commission with all reasonable dispatch and the reasonable cost of such protective works shall be paid by the Council and the Council shall not commence the works until the engineer shall have notified the Council that such temporary or permanent works have been completed:
- (6) (a) Except with the consent of the commission the Council shall not, in the construction of the works, interfere with any railway station or station entrance or the means of access to any such station or entrance or with any railway ventilation outlet or inlet or other railway work until alternative facilities of the like nature have been provided at the cost of the Council and to the reasonable satisfaction of the commission;
- (b) On the completion of the construction of such alternative facilities as aforesaid the same shall by virtue of this Act, without any payment or other consideration and without any further assurance, be transferred to and vest in the commission;
- (c) Subject to the provisions of sub-paragraph (a) of this paragraph, the Council may for the purposes of the works acquire, or take possession compulsorily of, the site of railway property in respect of which alternative facilities have been provided as aforesaid:

Provided that if any benefit accrues to the commission by reason of the provision of any such alternative

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—cont.

facilities as aforesaid, being facilities afforded by means of mains, pipes, cables or other similar apparatus, there shall be taken into account in assessing the amount of compensation or purchase money to be paid by the Council to the commission for the acquisition of the site of the railway property in respect of which the alternative facilities are provided the benefit so accruing:

- (7) The Council shall, except in cases of emergency, give to the engineer twenty-eight days' notice of their intention to commence the construction of any of the works:
- (8) The construction of the works (or so much thereof as shall be carried out by the Council) shall when commenced be carried out with all reasonable dispatch in accordance with the approved plans and under the supervision (if given) and to the reasonable satisfaction of the engineer and in such manner as to cause as little damage as may be to railway property and as little interference as may be with the conduct of traffic on the railways of the commission and the use by passengers of railway property and if any damage to railway property or any such interference shall be caused by the construction of the works the Council shall notwithstanding any such approval as aforesaid forthwith make good such damage and pay to the commission the reasonable costs and expenses to which they may be put and reasonable compensation for any loss which they may sustain by reason of any such damage or interference:

Provided that nothing in this paragraph shall impose any liability on the Council with respect to any damage, costs, expenses or loss which is attributable to the act, neglect or default of the commission or their servants or agents:

- (9) The Council shall at all times afford reasonable facilities to the engineer for access to the works during their construction and shall supply him with all such information as he may reasonably require with regard to the works or the method of construction thereof:
- (10) The commission shall at all times afford reasonable facilities to the Council for access to any works carried out by the commission under this section and shall supply the Council with all such information as they may reasonably require with regard to such works or the method of construction thereof:
- (11) If any alterations or additions, either permanent or temporary, to railway property are reasonably necessary

during the construction of the works or during a period of twelve months after the completion thereof in consequence of the construction of the works by the Council such alterations and additions may be effected by the commission after notice has been given to the Council and the Council shall repay to the commission the reasonable cost thereof including a capitalised sum representing the increased or additional cost of maintaining, working and, when necessary, renewing railway property in consequence of any such alterations or additions:

Provided that if the cost of maintaining, working or renewing railway property is reduced in consequence of any such alterations or additions a capitalised sum representing such saving may be set off against any sum payable by the Council to the commission under this section:

- (12) The Council shall repay to the commission all costs, charges and expenses reasonably incurred by the commission by reason of the works—

(a) in respect of the employment of any inspectors, watchmen and other persons whom it shall be reasonably necessary to appoint for inspecting, watching, lighting and signalling railway property and for preventing, as far as may be reasonably practicable, interference, obstruction, danger or accident arising from the construction of the works;

(b) in respect of any special traffic working resulting from any speed restriction which may in the opinion of the engineer require to be imposed and which may be due to the construction of the works or from the substitution or diversion of services; and

(c) in additional lighting of railway property in the vicinity of the works, being lighting made reasonably necessary during and by reason of the construction of the works:

- (13) All temporary structures, erections, works, apparatus and appliances erected or placed by the Council under the powers of section 23 (Power to construct bridges, etc., and to execute temporary works on railways) of this Act upon, over or under any railway of the commission shall as soon as reasonably practicable be removed by the Council to the reasonable satisfaction of the engineer and in such a way as to cause as little damage to railway property and as little interference with, or interruption to, the traffic on the railways of the commission as may be and if any damage to railway property

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—cont.

or such interference, delay or interruption shall be caused by any such failure to remove any such temporary structures, erections, works, apparatus or appliances the Council shall forthwith make good such damage and pay to the commission the reasonable costs and expenses to which they may be put and reasonable compensation for any loss which they may sustain by reason of such damage, interference, delay or interruption:

- (14) (a) (i) The structure of the widened portion of the bridge, including the abutments and the piers thereof, carrying Finchley Road as widened over the lands numbered in the borough of Hampstead 78 on the deposited plans; and
- (ii) The structure carrying Finchley Road as widened across the ventilation shaft of the commission situate in the lands numbered in the said borough 179 on the deposited plans,
- shall, when completed, vest in, and be maintained by, the commission:
- (b) The Council shall pay to the commission such capital sum as may be agreed between the Council and the commission or determined by arbitration to represent the cost of maintaining and renewing any structure vested in the commission under the foregoing sub-paragraph:
- (15) The Council shall be responsible for and make good to the commission all costs, charges, damages and expenses not otherwise provided for in this section which may be occasioned to the commission by reason of any act or omission of the Council or of any persons in their employ or of their contractors or others whilst engaged upon the construction of the works and the Council shall effectively indemnify and hold harmless the commission from and against all claims and demands arising out of or in connection with the construction of the works or any act or omission as aforesaid and the fact that any work or thing may have been done by the commission on behalf of the Council or in accordance with any plan, section or particulars approved by the engineer or in accordance with any requirement by the engineer or under his supervision shall not (if it was done without negligence on the part of the commission or of any person in their employ or of their contractors or others whilst engaged upon the construction of the works) excuse the Council from any liability under the provisions of this section:

Provided that the commission shall give to the Council reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without prior consent of the Council:

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—cont.

- (16) Any additional expense which the commission shall reasonably incur after giving one month's notice thereof to the Council in altering, reconstructing or maintaining the railways of the commission in pursuance of any powers existing at the passing of this Act by reason of the existence of the works shall be repaid by the Council to the commission:
- (17) Any difference arising between the Council and the commission under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

76. For the protection of the undertakers, the following provisions shall, unless otherwise agreed in writing between the Council and the undertakers concerned, apply and have effect:—

For further
protection of
certain
statutory
undertakers.

- (1) In this section—

“ apparatus ” means mains, pipes or other apparatus belonging to or maintained by the undertakers and includes any works constructed for the lodging therein of apparatus;

“ in ” in a context referring to apparatus includes under, over, across, along or upon;

“ the undertakers ” means the Metropolitan Water Board, the North Thames Gas Board, the South Eastern Gas Board and the London Hydraulic Power Company or any of them:

- (2) Notwithstanding anything in this Act or shown on the deposited plans, the Council shall not under the powers of this Act acquire any apparatus otherwise than by agreement:
- (3) Where in accordance with section 5 (Power to acquire lands) of this Act any lands are conveyed to the Conservators or where under section 20 (Power to stop up part of Roehampton Lane and vesting of site thereof) of this Act any land now forming the site of Roehampton Lane is vested in the Conservators, the undertakers shall be entitled to exercise the same rights and powers in respect of any apparatus remaining in such lands as they enjoyed immediately before the passing of this Act:

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—cont.

- (4) Notwithstanding the stopping up temporarily or permanently of any street or road or subway or part of a street or road or subway under the powers of section 22 (Power to make subsidiary works, etc.), section 28 (Power to stop up street) or section 31 (Power to stop up ways temporarily) of this Act the undertakers, their engineers or workmen and others in their employ shall at all times have such powers and rights (including rights of access) in respect of any apparatus situate in any such street or road or subway or part thereof, as they had immediately before such stopping up for the purpose of inspecting, maintaining, renewing or removing the apparatus:
- (5) (a) Where any street or road or part of a street or road is stopped up permanently under any of the powers referred to in paragraph (4) of this section, the undertakers may, and if reasonably requested so to do by the Council, shall—
- (i) remove any apparatus in the street or road or part thereof and place it or other apparatus provided in substitution for it in such other position as they may reasonably determine and have power to place it; or
 - (ii) provide other apparatus in substitution for the existing apparatus and place it in such position as aforesaid;
- (b) The Council shall pay to the undertakers an amount equal to the cost reasonably incurred by them in or in connection with—
- (i) any works executed under this paragraph (including the provision of apparatus thereunder) required in consequence of the stopping up of the street or road or part thereof; and
 - (ii) the doing of any other work or thing rendered necessary by the execution of such works as aforesaid:

Provided that subsections (3) and (4) of section 23 of the Public Utilities Street Works Act, 1950 (which impose limitations on undertakers' rights to payment) shall, so far as applicable and with any necessary modifications, extend and apply to any payment to be made by the Council under this paragraph as if the works in respect of which the payment is to be made were such undertakers' works as are referred to in the said subsection (3) and as if in that subsection for the words "specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to

this Act ” there were substituted the words “ agreed or settled by arbitration under section 76 (For further protection of certain statutory undertakers) of the London County Council (General Powers) Act, 1961 ”:

- (6) Nothing in section 26 (Prohibition of persons, vehicles, etc., on reserved area) of this Act shall affect the rights of the undertakers with respect to any apparatus (including the placing of apparatus) in any reserved area:
- (7) The Council or a borough council (as the case may be) shall so far as is reasonably practicable so exercise the powers conferred by section 30 (Power to prevent access to or from improvements) of this Act as not to obstruct or render less convenient the access to any apparatus:
- (8) Any difference which may arise between the Council and the undertakers under this section shall be settled by arbitration.

77. For the protection of the undertakers the following provisions shall, unless otherwise agreed in writing between the Council and the undertakers, apply and have effect:—

For protection
of certain
electricity
undertakers.

- (1) In this section unless the subject or context otherwise requires—

“ Act of 1950 ” means the Public Utilities Street Works Act, 1950;

“ apparatus ” means electric lines or works (as respectively defined in the Electric Lighting Act, 1882) belonging to or maintained by the undertakers and includes any works constructed for the lodging therein of apparatus;

“ in ” in a context referring to apparatus includes under, over, across, along or upon;

“ position ” includes depth;

“ the undertakers ” means—

the Central Electricity Generating Board, and
the London Electricity Board,

or either of them, as the case may be:

- (2) Notwithstanding anything in this Act or shown on the deposited plans or contained in the deposited book of reference, the Council shall not under the powers of this Act acquire any apparatus compulsorily:
- (3) Subject to the provisions of this section, the provisions of the Act of 1950 shall apply and have effect in relation

PART IX
—cont.

to the works authorised by section 23 (Power to construct bridges, etc., and to execute temporary work on railways) and section 25 (Carriageway, footway and other works) of this Act as if those works were mentioned in paragraph (a) of subsection (1) of section 21 of the Act of 1950:

Provided that for the purposes of such application the provisions of the Act of 1950 shall have effect—

(a) so as to impose on the Council an obligation before commencing any of the said works to give notice to the undertakers under paragraph 2 of the Fourth Schedule to the Act of 1950 together with plans, sections and particulars of the works to be commenced; and

(b) as if accordingly the words in parentheses in paragraph 3 of the said schedule relating to a road alteration were omitted from the paragraph:

- (4) Where in consequence of the construction of any subway under the powers of the said section 25 the position of any apparatus is required to be altered so as to pass under such subway, the Council shall repay to the undertakers any additional expenses reasonably incurred by the undertakers in consequence of the alteration of the position of the apparatus in breaking open or reinstating any street or in inspecting, maintaining, repairing, removing or renewing the apparatus:
- (5) Where a street in which any apparatus is situated has been permanently stopped up or diverted by the Council under the powers of section 22 (Power to make subsidiary works, etc.) or section 28 (Power to stop up street) of this Act, the undertakers shall notwithstanding such stopping up or diversion continue to have the same powers and rights in respect of the apparatus remaining in the land which by reason of the stopping up or diversion has ceased to be a street as they would have if it had remained a street or the undertakers may and, if reasonably required by the Council, shall—
- (a) remove the apparatus and relay or replace it in the street (if any) substituted for the street so stopped up or diverted or in such other position as the undertakers may reasonably determine; or
- (b) provide and lay or place in the street (if any) so substituted, or in such other position as aforesaid, other apparatus:

- (6) The Council shall repay to the undertakers the reasonable expenses incurred by the undertakers in or in connection

with the carrying out of such works as are referred to in sub-paragraphs (a) and (b) of the last foregoing paragraph (whether or not the Council have required those works to be carried out) including expenses so incurred in cutting off any apparatus from any other apparatus and in doing any work rendered necessary in consequence of carrying out the said works:

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—cont.

Provided that subsections (3) and (4) of section 23 of the Act of 1950 (which impose limitations on undertakers' rights to payment) shall so far as applicable extend and apply to any payment to be made by the Council under this paragraph as if the works in respect of which the payment is to be made were such undertakers' works as are referred to in the said subsection (3) and as if in that subsection for the words " specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act " there were substituted the words " agreed or settled by arbitration under section 77 (For protection of certain electricity undertakers) of the London County Council (General Powers) Act, 1961 ":

(7) Where in accordance with section 5 (Power to acquire lands) of this Act any lands are conveyed to the Conservators or where under section 20 (Power to stop up part of Roehampton Lane and vesting of site thereof) of this Act any land now forming the site of Roehampton Lane is vested in the Conservators, the London Electricity Board shall be entitled to exercise the same rights and powers in respect of any apparatus remaining in such lands as they enjoyed immediately before the passing of this Act:

(8) The temporary stopping up or diversion of the whole or any part of the carriageway or footway of any street or part of a street or of any subway under the powers of section 31 (Power to stop up ways temporarily) of this Act shall not prejudice or affect any right of the undertakers—

(a) to maintain, operate, inspect, repair, renew or remove any apparatus which at the time of the stopping up or diversion is in the carriageway, footway or subway, as the case may be; or

(b) for the purpose of such maintenance, operation, inspection, repair, renewal or removal to enter upon, break open or carry out works in that carriageway, footway or subway, as the case may be:

PART IX
—cont.

- (9) Notwithstanding anything contained in section 26 (Prohibition of persons, vehicles, etc., on reserved area) of this Act, the undertakers, their officers, engineers, workmen and contractors shall be at liberty, at all times, to enter upon the reserved area on foot for the purpose of inspecting, repairing, maintaining, renewing or removing any apparatus situated in, or adjoining, the reserved area:
- (10) If by reason or in consequence of the execution by the Council of any works under the powers of this Act any damage to any apparatus (other than apparatus the repair of which is not reasonably necessary in view of its intended removal or abandonment) or property of the undertakers or any interruption in the supply of electricity by the undertakers shall be caused the Council shall bear and pay the cost reasonably incurred by the undertakers in making good such damage and shall—
- (a) make reasonable compensation to the undertakers for any loss sustained by them, and
 - (b) indemnify the undertakers against all claims, demands, proceedings, costs, damages and expenses which may be made or taken against or recovered from or incurred by the undertakers,
- by reason or in consequence of any such damage or interruption:
- Provided that—
- (i) nothing in this paragraph shall impose any liability on the Council with respect to any damage or interruption which may be attributable to the act, neglect or default of the undertakers or their contractors or workmen;
 - (ii) the undertakers shall give to the Council reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Council:
- (11) The expenses of all repairs or renewals of any apparatus which may be rendered necessary by reason or in consequence of the construction of any works under the powers of this Act or any subsidence resulting from those works shall be borne by the Council and paid by them to the undertakers:
- (12) The Council shall bear and pay any cost reasonably incurred by the undertakers in the reasonable employment of watchmen and inspectors during the execution under the powers of this Act of any work which will or may interfere with or affect any apparatus:

(13) Any difference arising between the Council and the undertakers under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration:

(14) The provisions of this section shall have effect notwithstanding anything in the Act of 1950.

78. Any question or difference which pursuant to this Act is Arbitration to be settled by arbitration (other than a question or difference to which the provisions of the Lands Clauses Acts apply) shall, except as otherwise provided by this Act, be referred to and determined by an arbitrator to be agreed upon between the parties in difference or, failing such agreement, to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil Engineers.

79.—(1) Except as otherwise provided in this Act, all costs and Costs of Act. expenses of the Council in the execution of this Act shall be defrayed as payments for general or special county purposes within the meaning of the Act of 1939 as the Council may decide.

(2) So much of the costs, charges and expenses preliminary to and of and incidental to the preparing, applying for and obtaining of this Act as may be incurred in respect of or in connection with the provisions contained in—

- (i) Part V (White Hart Dock),
- (ii) Part VI (Poplar Borough Council (superannuation)),
- (iii) Part VII (Westminster City Council (superannuation)),
- (iv) section 70 (Provision of transport service at Islington and Saint Pancras Cemetery),
- (v) section 71 (Provision of shops by Chelsea Council), and
- (vi) section 72 (Calculation of pensions, etc., of certain servants of Paddington Council)

shall, unless otherwise agreed, be paid as regards (i) by the Lambeth Council, as regards (ii) by the Poplar Council, as regards (iii) by the Westminster Council, as regards (iv) by the Islington Council and the Saint Pancras Council in equal shares, as regards (v) by the Chelsea Council and as regards (vi) by the Paddington Council.

SCHEDULE

Section 40

LANDS EXCEPTED FROM EXTENSION OF TIME

PART I

LANDS EXCEPTED FROM EXTENSION OF TIME FOR THE PURPOSES OF THE
ACT OF 1936

The lands excepted from the provisions of paragraph (a) of subsection (1) of section 40 (Extension of time for compulsory purchase of lands by Council) of this Act are the lands in the borough of Fulham numbered as follows on the plans deposited in respect of the Bill for the Act of 1936 (that is to say):—

15, 41, 42 and 63 to 66 (inclusive).

PART II

LANDS EXCEPTED FROM EXTENSION OF TIME FOR THE PURPOSES OF THE
ACT OF 1938

The lands excepted from the provisions of paragraph (b) of subsection (1) of section 40 of this Act are the lands in the borough of Poplar numbered as follows on the plans deposited in respect of the Bill for the Act of 1938 (that is to say):—

22 to 32 (inclusive), 34, 35, 37 to 43 (inclusive) and 46 to 53 (inclusive).

PART III

LANDS EXCEPTED FROM EXTENSION OF TIME FOR THE PURPOSES OF THE
ACT OF 1948

The lands excepted from the provisions of paragraph (c) of subsection (1) of section 40 of this Act are the lands in the borough of Hammersmith numbered as follows on the plans deposited in respect of the Bill for the Act of 1948 (that is to say):—

20, 22 to 35 (inclusive), 37 to 44 (inclusive), 46 to 60 (inclusive), 77 to 92 (inclusive), 96 to 107 (inclusive), 109 to 114 (inclusive), 116 to 123 (inclusive), 142 to 160 (inclusive), 180, 212, 214 to 218 (inclusive), 246, 255, 260 to 270 (inclusive), 371, 373, 374, 467 to 475 (inclusive), 477, 509 to 517 (inclusive), 519 and 528 to 534 (inclusive).

Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Clauses Consolidation Act, 1845 ...	8 & 9 Vict. c. 18.
Metropolis Management Act, 1855 ...	18 & 19 Vict. c. 120.
The Wimbledon and Putney Commons Act, 1871	34 & 35 Vict. c. cciv.
Telegraph Act, 1878	41 & 42 Vict. c. 78.
Metropolis Management (Thames River Prevention of Floods) Amendment Act, 1879	42 & 43 Vict. c. cxcviii.
Electric Lighting Act, 1882	45 & 46 Vict. c. 56.
Metropolitan Board of Works (Various Powers) Act, 1882	45 & 46 Vict. c. lvi.
Disused Burial Grounds Act, 1884 ...	47 & 48 Vict. c. 72.
London County Council (Subways) Act, 1893	56 & 57 Vict. c. ccii.
Friendly Societies Act, 1896	50 & 60 Vict. c. 25.
Workmen's Compensation Act, 1906 ...	6 Edw. 7 c. 58.
Westminster City Council (Superannuation and Pensions) Act, 1909	9 Edw. 7 c. lix.
Paddington Borough Council (Superannuation and Pensions) Act, 1911	1 & 2 Geo. 5 c. ci.
Poplar Borough Council (Superannuation and Pensions) Act, 1911	1 & 2 Geo. 5 c. cii.
Westminster City Council (General Powers) Act, 1921	11 & 12 Geo. 5 c. xxviii.
London County Council (General Powers) Act, 1928	18 & 19 Geo. 5 c. lxxvii.
London County Council (General Powers) Act, 1933	23 & 24 Geo. 5 c. xxviii.
London and Middlesex (Improvements &c.) Act, 1936	26 Geo. 5 & 1 Edw. 8 c. cviii.
Local Government Superannuation Act, 1937	1 Edw. 8 & 1 Geo. 6 c. 68.
London County Council (General Powers) Act, 1937	1 Edw. 8 & 1 Geo. 6 c. xci.
London County Council (General Powers) Act, 1938	1 & 2 Geo. 6 c. xxxviii.
London County Council (Tunnel and Improvements) Act, 1938	1 & 2 Geo. 6 c. lxxxi.
London Government Act, 1939	2 & 3 Geo. 6 c. 40.
Local Government Staffs (War Service) Act, 1939	2 & 3 Geo. 6 c. 94.
Town and Country Planning Act, 1947 ...	10 & 11 Geo. 6 c. 51.
London County Council (Improvements) Act, 1948	11 & 12 Geo. 6 c. iv.
London County Council (General Powers) Act, 1948	11 & 12 Geo. 6 c. liii.
Lands Tribunal Act, 1949	12, 13 & 14 Geo. 6 c. 42.
National Parks and Access to the Countryside Act, 1949	12, 13 & 14 Geo. 6 c. 97.
Public Utilities Street Works Act, 1950 ...	14 Geo. 6 c. 39.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2 c. 55.
Local Government Superannuation Act, 1953	1 & 2 Eliz. 2 c. 25.

Short title	Session and chapter
London County Council (General Powers) Act, 1956	4 & 5 Eliz. 2 c. lxxvii.
London County Council (General Powers) Act, 1957	5 & 6 Eliz. 2 c. xxxv.
London County Council (General Powers) Act, 1958	6 & 7 Eliz. 2 c. xxi.
Land Compensation Act, 1961	9 & 10 Eliz. 2 c. 33.

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